Competitive Flexible Procedure
Procurement Act 2023

Instructions to Potential Suppliers

Road Haulage and Warehousing Services

Procurement Reference Number: Project _ 38486

Date of Publication (06/08/2026)

Introduction

1. This Procurement is being conducted in accordance with the Procurement Act using the Competitive Flexible Procedure.

2. This document outlines how the Procurement will be conducted, including details of the associated Procurement timetable, participation and award criteria and how to respond to this opportunity.

3. This document also comprises the following Appendices:

    - Appendix A – Procurement terms and conditions. **Please read and ensure compliance with the Procurement terms and conditions**
    - Appendix B – Procurement Specific Questionnaire (PSQ) criteria
    - Appendix C – Tender criteria
    - Appendix D - Definitions - common terms and expressions shall have the meanings ascribed to them in the glossary in Appendix D

    Please read this document carefully before preparing their submissions, as failure to comply with this document may result in exclusion from the Procurement and/or the rejection of any submission.

4. This document should be read in conjunction with the Tender Notice and any other associated tender documents which have been or will be made available in the course of this Procurement. The documents made available at this stage are:

    - Draft NR 1 Contract Including Specification and Associated Schedules
    - Pricing Document – Road Haulage & Warehousing
    - Data Pack for Road Haulage and Warehousing
    - Summaries of Pre-Market Engagement Activities
    - TUPE Data
    - Form of Tender
    - Certificate of non-collusion and non-canvassing
    - Attachment relating to Mobilisation of Contract Question (2.3.1)
    - Road Haulage Gain & Pain Share Proposal Attachment (3.1.2)
    - Supporting Commercial Attachment for Road Haulage (3.1.3)
    - Supporting Commercial Attachment for Warehousing (3.1.4)

- Pricing Document for Fleet Spares Storage (3.1.5)
- IT Systems Approval Process guidance
- Mid-Tender Clarification Meeting Guidance

5. This document has been updated for the tender stage and is being reissued to shortlisted Potential Suppliers. Network Rail reserves the right to issue updated versions of this document and any associated tender documents to Potential Suppliers as and when the need arises, in order to reflect the current stage of the Competitive Flexible Procedure, together with any changes to the Procurement or any new information.
6. All references to a 'section' are to a section in the Procurement Act unless otherwise stated.
7. All references to a 'paragraph', 'appendix' or 'annex' are to a paragraph, appendix or annex of this document unless otherwise stated.
8. All references to dates and times within this document shall be interpreted in accordance with the United Kingdom time zones applicable at the date of the Procurement (i.e. GMT/BST).
9. Should (i) the Potential Supplier find omissions, discrepancies or inconsistencies in this document and/or any associated tender documents; (ii) the meaning or intent of this document and/or any associated tender documents be unclear or illegible; or (iii) the Potential Supplier otherwise wishes to raise any question or assumption in respect of these documents, the Potential Supplier shall promptly seek clarification from Network Rail via the Bravo Portal.

Procurement Timetable

10. The timetable for the Procurement is set out in the following table (the Procurement Timetable). Deadlines for the submission of clarifications and responses to Network Rail are shown in bold.

11. Please note that Network Rail reserves the right, in its absolute discretion, to amend the Procurement Timetable or extend any time period in connection with the Procurement, at any time. Any changes to the Procurement Timetable will be notified simultaneously to the Potential Suppliers via the Bravo Portal.

12. **Failure to meet these deadlines will result in a Potential Supplier's submission not being considered unless there are exceptional mitigating circumstances.**

Activity	Date & Time
Publication of Tender Notice	02/03/2026
Procurement Launch Event	17/03/2026 – 13:30pm
Deadline of submission of clarification questions relating to PSQ	**20/03/2026 – 12:00pm**
PSQ response deadline	**27/03/2026 – 12:00pm**
Notification of PSQ Outcome	24/06/2026
Launch tender stage (Phase 1)	06/08/2026
Tender Kick-off event (Phase 1)	13/08/2026 – 13:30pm
Deadline of submission of Mid Tender clarification Meeting Agenda	**04/09/2026 – 12:00pm**
Mid Tender clarification Meetings (Phase 2)	**w/c 21/09/2026**
Deadline of submission of clarification questions relating to the tender stage	**02/10/2026 – 12:00pm**
Tender Submission deadline (Phase 3)	**09/10/2026 – 12:00pm**
Evaluation, Moderation & Governance Process (Phase 4)	12/10/2026 –15/01/2027
Publication of Assessment Summaries and Contract Award Notice (Phase 5)	18/01/2027
Contract award date	01/02/2027

Overview of Requirement

13. Network Rail is a public sector non-departmental public body who own, operate, maintain and develop the railway infrastructure in England, Scotland and Wales.

14. This Procurement relates to the award of a single contract for the provision of a road haulage service and warehouse management. Currently, Network Rail have two separate contracts for Road Haulage Services and Warehousing Services. The subject matter of this procurement combines the two services, with the aim to minimise supply chain risk, manage interface, ensure seamless service and generate efficiency opportunities.

15. Through market engagement and internal reviews, Network Rail identified that there would be multiple benefits of bringing the two key services of Road Haulage and Warehousing together under one single contract to combine the delivery of the following:

- Network Rail requires a 24/7 road haulage service to manage the collection, haulage and delivery (including loading and offloading) of materials by road, including, but not limited to: sleepers, short rail, rail ancillaries, aggregates (loose or bagged), switches & crossings, troughing, manufactured materials, and large and abnormal loads, including, but not limited to: locomotives, tampers, rolling stock and specialist switches and crossings to a specified location. The requirement over the previous two years has made ~35,000 individual journeys on a yearly basis covering the entire UK and ~100 international journeys utilising vehicles ranging in size from vans to large extendable flatbeds and cranes.

- Network Rail also has the requirement for warehousing management. This includes but is not limited to: physical and systemic receipt of stock; physical and systemic put-away of stock; management of stock to legislative and Network Rail defined specifications (i.e. Certificates of Conformity, COSHH, detonators); management of life-expired stock; physical perpetual inventory checks; physical and systemic pick of required materials; physical despatch and delivery of materials to defined delivery point; physical and systemic capture of material proof of delivery records; physical and systemic receipt and processing of requests for material return; physical and systemic receipt and processing of requests for material repair; physical collection of returned media (e.g. pallets, collars and cable drums); physical distribution and collection of repair materials to and from repair agents and systemic capture and processing of such material; provision of Customer Services Helpdesk; undertaking of certified racking inspection checks; collection of materials from some of Network Rail's Materials Suppliers and delivery to the RDCs; distribution of materials from supplier-operated Regional Distribution Centres (RDCs). Standard Operating Practices shall be developed by the successful supplier in conjunction with Network Rail.

- The scope of the proposed Contract covers combined services including the provision of a transport planning team to co-ordinate and manage all transport requests covering both the Road Haulage and Warehousing distribution requirements, proactively managing all haulage requirements and providing information to support the delivery of improvements in safety, value, and sustainability. The contract will also include combined system requirements including a Transport Management System, Web-Based Order Portal and a Customer Relations Management (CRM) System.

- Network Rail has a requirement to operate nine (9) RDCs which also forms part of the scope of this Contract. Supporting the geographical routes and regions with the supply of maintenance materials, this more localised supply chain is intended to make critical materials more

accessible to the end user by being geographically closer to Minor Stocking Points (MSPs) and providing access 24/7 on an on-call basis when outside of core working hours.

- MSP regular deliveries schedules are required to be managed through the RDC(s) but the operation of the MSPs is outside of the scope of this Contract.

- Network Rail requires a supplier to manage and deliver a vehicle trunking service delivering materials throughout the RDC network.

- The trunk vehicles are currently managed centrally from the Coventry RDC. There are three vehicles that work to a set schedule. Stock for each RDC is marshalled in Coventry and delivered two or three times each week to every RDC. Stock picked at the receiving RDC is then loaded onto the same vehicle and backhauled to Coventry, marshalled, and delivered back out to fulfil customer demand at the MSPs. Trunking fulfils customer expectations on the basis that each MSP has a milk run schedule.

- Network Rail currently lease the 9 RDCs as detailed within the associated tender documents and the scope of the Contract includes the requirement to operate the leased buildings delivering a warehousing solution. As set out in the Contract, Network Rail requires the successful supplier to be flexible, with the possibility that RDC operations may grow or be downscaled over time. Any requirements for upscaling or downscaling shall be discussed with the successful supplier on a case-by-case basis. The value of stock, as of July 2025, within these RDCs is currently ~£80m (SCO Network Rail owned), there is additional customer owned stock.

- From time to time, Network Rail may require additional storage locations to hold Stock which cannot be stored at existing Network Rail sites (being RDCs and any other Network Rail storage sites). The Supplier shall work with Network Rail to find such suitable additional storage locations, either at premises owned by the Supplier or another external location as required.

- Network Rail currently spends on average £28m per year on road haulage services, and £9m per year for warehousing services, with the expectation of this remaining broadly in line with the annual spend, with an element of flex due to demand.

Further details are set out in the specification within Schedule 1 of the Contract.

16. The proposed core terms and conditions for this Contract are NR1 which is being made available as part of the associated tender documents, please note there are aspects that will require completion by the successful supplier. These aspects have been clearly highlighted in the document with

yellow highlighting. There are also Contract specific terms in addition to the core terms of the NR1, Potential Suppliers are encouraged to read these terms.

17. Network Rail is intending to award an 8 year contract on a 4+4 year basis. The estimated total value of the contract across the 8 years is £372,000,000 inclusive of VAT.

18. The four publishable KPI's as part of this Contract are (detail of which are within the NR1 Contract Schedule 11):

    (1) On Time In Full (OTIF) – Road Haulage Performance
    (2) On Time In Full (OTIF) – Warehousing Performance
    (3) Stock Accuracy & Loss – Warehousing Performance
    (4) Carbon Reduction – Combined Performance for both Road Haulage and Warehousing

19. The IR35 determination for the delivery of this contract has deemed this requirement is out of scope.

20. As detailed above, these services are currently operated across two contracts. Current staff of the incumbent suppliers may be eligible for transfer to the employment of any successful supplier, under the provisions of Transfer of Undertakings (Protection of Employment) (TUPE) Regulations 2006 (as amended). Further details including workforce data are being provided at the tender stage.

21. Network Rail will carry out a conditions of participation stage (requiring completion of a PSQ) followed by a single stage tender process allowing for a single mid-tender clarification meeting offered to all shortlisted Potential Suppliers before tenders are submitted.

22. This contract will be available to Network Rail, Great British Railways, DfT Operator Limited, and their subsidiaries, successor organisations and affiliates.

General Submission Guidelines

23. Network Rail uses the Bravo Portal for this Procurement; all communication and documents will be published through the Bravo Portal.

24. All communication with Network Rail in relation to this Procurement must be carried out using the Bravo Portal.

25. All responses must be completed in English using the appropriate response format as detailed within the question on the Bravo Portal.

26. Certain PSQ and tender questions set out within the Bravo Portal have page limits. Where the question sets out a page limit, any narrative in excess of the stated limits or which otherwise contravenes the instructions from Network Rail will be disregarded and will not be considered as part of your response.

27. Supporting documents should not be submitted unless requested by the question. It is the Potential Supplier's responsibility to ensure the attachments are correct for each question. Network Rail are not responsible for checking the attachments submitted.

28. The content of any pictures, charts, diagrams or other visuals will count towards the specified limitation on characters/pages specified within the question, unless Network Rail expressly states otherwise. Any submission including pictures, charts, diagrams or other visuals must be clearly legible to Network Rail when printed.

29. It is the responsibility of Potential Suppliers to include all relevant information in their submission at both the PSQ stage and, where a Potential Supplier is shortlisted, the Tender stage. Network Rail will not take into account any information that is not included within the relevant response. Responses to question must be submitted on a standalone basis and you are not permitted to cross-refer to responses to other questions.

30. All financial data is to be provided in pounds sterling (exclusive of Value Added Tax) unless otherwise requested.

31. The Bravo Portal supports individual attachments up to a maximum size of 100Mb but it is recommended that you keep attachments to 2Mb. Where multiple attachments are permitted in response to a single question, then these must be uploaded as a zip file.

32. By preparing and submitting a response, the Potential Supplier represents that it has read, fully understands and agrees to abide by the requirements of this document and associated tender documents, has familiarised itself with the Procurement and any particular conditions under which the Contract is to be performed and, in the context of any tender submission, has allowed for all such conditions within its tender.

Clarifications

33. Any requests for clarification relating to the Procurement must be submitted via the Bravo Portal, no later than the relevant deadline in the Procurement Timetable. Network Rail will endeavour to respond to requests for clarification submitted in accordance with these requirements as soon as possible.

34. Network Rail reserves the right not to answer any requests for clarification submitted after the relevant deadline set out in the Procurement Timetable or submitted via any means other than the Bravo Portal.

35. If Potential Suppliers identify a technical issue with the Bravo Portal they should contact Network Rail without delay via the following contact point at:

Matthew Taylor, Sourcing Manager

Matthew.Taylor76@networkrail.co.uk

36. Where Network Rail considers any requests for clarification to be relevant to the proper functioning of the Procurement, it will transmit to all other Potential Suppliers (without reference to the identity of the Potential Suppliers which submitted the clarification question) the clarification question raised and Network Rail's response, with the exception of those deemed confidential.

37. If a Potential Supplier considers that its request for clarification should be treated as confidential and not disclosed to other Potential Suppliers, it must communicate this and the reason why to Network Rail at the time of the submission of that clarification request. Network Rail will advise the Potential Suppliers in advance of providing the clarification response if it considers that all or any part of the request for clarification cannot be treated as confidential and will provide an opportunity for the Potential Supplier to withdraw such aspects of the request for clarification.

38. In such circumstances, the Potential Supplier may either submit an amended request for the clarification to be treated as confidential, which would be considered by the Network Rail in the same manner as the original request or raise a new request to be treated as a non-confidential request for clarification.

39. It is the responsibility of each Potential Supplier to monitor all clarifications issued by Network Rail. Network Rail accepts no liability for any Potential Suppliers failure to keep abreast of clarifications issued.

40. Queries received and Network Rail’s responses provided during the PSQ stage will (other than being shared with those engaged by Network Rail in assessment of the Potential Supplier’s response to the conditions of participation) only be shared with Potential Suppliers participating at the PSQ stage. Queries received and Network Rail’s responses provided during the tender stage will (other than being shared with those engaged by Network

Rail in assessment of the Potential Supplier's tender response, negotiations and/or conclusion of the Contract) only be shared with Potential Suppliers participating at the tender stage.

Part A – Conditions of Participation Stage

41. Network Rail wishes to invite all interested Potential Suppliers to attend a procurement launch event as detailed within the Procurement Timetable provided. The event will provide a summary of the requirements of Network Rail in accordance with the specification provided within the NR 1 Contract and an overview of the Procurement process. This shall also provide an opportunity for Potential Suppliers to raise any questions or clarifications. All questions and clarifications shall be recorded and shared with all Potential Suppliers after the launch event via the Bravo Portal.

42. Network Rail is using the PSQ to obtain information about a Potential Supplier and to set out its conditions of participation for this Procurement. In order to be considered for shortlisting to the tender stage of this Procurement, Potential Suppliers must provide all the information as set out in the PSQ by the deadline in the Procurement Timetable and satisfy the conditions of participation.

43. The PSQ is available through the Bravo Portal. The PSQ has been broken into two envelopes: qualification and technical.

44. Potential Suppliers are required to provide their up-to-date core information on the Central Digital Platform (CDP) and share this information with us via the CDP (either as a share code or PDF download) in the relevant PSQ question.

45. Potential Suppliers may choose to rely on the capacities of other suppliers in order to meet the conditions of participation criteria set out. The types of suppliers which may be relied upon include, but are not limited to, consortia members, sub-contractors and group companies (e.g. parent company). These "relied upon" entities are referred to as "Associated Persons" and the Potential Supplier is responsible for ensuring that each such entity responds to the relevant questions within the PSQ.

46. All Associated Persons are required to provide their own up-to-date core information on the Central Digital Platform (CDP) and share this information with us via the CDP (as a PDF download) in the relevant PSQ question.

47. Where a Potential Supplier intends to use sub-contractors, not all of these sub-contractors will be Associated Persons (i.e. it may wish to use other members of its supply chain but these are not relied upon by the Potential Supplier to satisfy conditions of participation). Network Rail requires a Potential Supplier to provide details of all sub-contractors in the supply chain that a Potential Supplier intends to use to deliver the contract. In addition to undertaking checks against the Associated Persons, Network Rail will also:

- check whether other intended sub-contractors are on the debarment list and this applies to all sub-contractors (**of all tiers**) that the Potential Supplier intends to sub-contract to. This means the Potential Supplier must provide an exhaustive list of all their other intended sub-contractors in the supply chain that are known about at the time of the PSQ response.

- Network Rail is also requiring Potential Suppliers to provide further information to enable Network Rail to determine whether any of the Potential Supplier's **Significant Sub-Contractors** (as defined in Appendix D) are subject to exclusion grounds (in addition to checking those sub-contractors against the debarment list).

Potential Suppliers must immediately notify Network Rail of any changes to submitted responses (including providing details of any replacement or additional intended sub-contractors to those provided in its PSQ response) at any time during the Procurement to enable Network Rail to assess any new intended sub-contractors against the debarment list and, if a Significant Sub-Contractor, against the exclusion grounds.

48. For each of the questions in the PSQ, the Potential Suppliers response will be assessed as per the methodology in Appendix B.

49. Where any Potential Supplier does not meet the minimum criteria for any question, section or envelope they will be excluded from the Procurement. **In particular, Potential Suppliers should note that each of the relevant experience questions 1 and 2 in the technical envelope have a minimum score of 2.**

50. PSQ responses will be checked for completeness and compliance. PSQ responses which are not complete, which are non-compliant and/or are late may be rejected and Network Rail shall not be obliged to continue its evaluation of the PSQ responses of that Potential Supplier.

51. The assessment and shortlisting process will involve an evaluation and a moderation process resulting in an agreed score which will be weighted according to the designated weight of the question.

52. All weighted scores will be rounded to 2 decimal places.

53. Potential Suppliers who have successfully achieved a pass for all pass/fail questions, and achieved a minimum score of 2 for each of the relevant experience questions 1 and 2 in the technical envelope, will have their PSQ responses ranked by reference to their total weighted score identified through the assessment process above, with the highest scoring PSQ response being ranked in first place.

54. It is the intention of Network Rail to select a shortlist of 4 Potential Suppliers to progress to tender stage.

55. In the event of two or more Potential Suppliers achieving identical total weighted PSQ scores to two decimal places for the 4th place on the shortlist, the following tests shall be applied (in descending order) until the Potential Supplier(s) invited to participate in the tender stage has been identified:

    - The Potential Supplier(s) with the highest **Technical Experience – Relevant Experience Bravo Reference 2.1.3 & 2.1.4 combined score** shall be invited to the tender stage;
    - In the event of two or more Potential Suppliers achieving identical total weighted PSQ scores to two decimal places, after the above test has been applied, and those Potential Suppliers are tied for 4th place, these suppliers shall be invited to tender stage.

56. In the event that there are fewer than 4 Potential Suppliers to be invited to the tender stage, then Network Rail reserves the right at its sole discretion to continue with the remaining short-listed Potential Suppliers or abandon the Procurement.

Part B – Tender Stage

The Potential Suppliers shortlisted in accordance with **Part A** of this document will be invited to the tender stage. The tender stage is divided into the following phases:

Phase 1 – Tender Launch and Tender Kick Off Event

Once the tender stage is formally launched through the Bravo Portal, the shortlisted Potential Suppliers shall be invited to a tender kick off event, where Network Rail will provide an overview of the requirement and expectations in relation to the tender stage and also provide an opportunity for initial clarification questions to be raised with Network Rail. Any clarifications or questions raised within the event shall be captured and responses will be circulated to all shortlisted Potential Suppliers through the Bravo Portal.

If a Potential Supplier wishes to request a visit to Coventry RDC, it must address any request to Network Rail's Procurement Lead. Any such visit will be a structured tour facilitated by a Network Rail representative and any clarifications or questions raised shall be captured and responses will be circulated to all shortlisted Potential Suppliers through the Bravo Portal. During such visits the Tenderer's personnel shall wear all appropriate personal protective equipment and comply with all site, railway and safety requirements and instructions.

Network Rail reserves the right during the tender stage to reissue, update or supplement this document and any associated tender document and reissue these to shortlisted Potential Suppliers.

Where the shortlisted Potential Supplier feels unable to comply with the requirements of Network Rail (including the terms and conditions of the Contract under any circumstances, or at any price, shortlisted Potential Suppliers are strongly encouraged to seek clarification through the process set out in this document and/or via the mid-tender clarification meetings set out below.

Phase 2 – Mid-Tender Clarification Meetings

Shortlisted Potential Suppliers will be invited to attend a single clarification meeting with Network Rail during the tender period. The intention of these meetings is to allow the shortlisted Potential Suppliers to present their initial thoughts or approach, provide Network Rail an opportunity to explain expectations and allow shortlisted Potential Suppliers to ask (pre-submitted) clarification questions and give the supplier feedback to support their understanding of Network Rail's requirements before tender submission. The intended scope of these meetings is to cover the Supplier's proposed method statements, Resourcing and Mobilisation question. Further details (including date / location / agenda) are being provided to shortlisted Potential Suppliers as part of the tender launch.

Nothing said or intimated by or on behalf of Network Rail at any meeting with shortlisted Potential Suppliers will be deemed to constitute approval of any proposal, or an acceptance of its adequacy in meeting Network Rail's requirements or represent an indication of how the proposal will score. Network Rail will endeavour to indicate through its feedback if it believes that the proposals are unlikely to meet Network Rail's requirements but any failure to do so will not constitute or be deemed to constitute approval of any proposal or an acceptance of its adequacy in meeting Network Rail's requirements. Formal evaluation will only take place following the submission of tenders when Network Rail is in a position to fully understand and assess the technical and commercial submission as a whole.

Following the meeting, Network Rail may, where appropriate, share points of clarification with all shortlisted Potential Suppliers.

Potential Supplier's attention is drawn to the deadline for final clarification questions specified in the Procurement Timetable.

Network Rail reserves the right to reissue, update or supplement its documents during the tender stage and reissue these to shortlisted Potential Suppliers.

Phase 3 Tender preparation and submission

Shortlisted Potential Suppliers will then finalise and submit their tenders through the Bravo Portal by the deadline set out in the Procurement Timetable.

The tender submission requirements are broken into three envelopes as follows:

Envelope and description	
Qualification	A shortlisted Potential Supplier must complete and upload a response to the qualification questions set out in the Bravo Portal. The Form of Tender provided as part of the associated tender documents must be completed with the full legal name and business address of the Potential Supplier and signed by someone appropriately authorised to submit such a tender and bind the Potential Supplier. Responses to this envelope are assessed on a Pass/Fail basis as indicated in Appendix C.
Technical	A shortlisted Potential Supplier must upload a response to the technical questions set out in the Bravo Portal. Responses to these questions will be scored as indicated in Appendix C. These questions carry a weighting of **70%**.
Commercial	A shortlisted Potential Supplier must complete and upload the Pricing Schedule set out in the Bravo Portal. The pricing schedule contains instructions on how to complete the workbook. The completed pricing schedule will be scored as indicated in Appendix C. Pricing carries a weighting of **25%**.

	A shortlisted Potential Supplier must also complete and upload the Road Haulage Gain & Pain Share Proposal set out in the Bravo Portal. The Proposal document contains instructions on how to complete the workbook. Road Haulage Gain & Pain Share proposal carries a weighting of **5%.**

Where qualifications are made within a Potential Supplier's tender response (whether it relates to a new issue which was not raised by the shortlisted Potential Supplier during the tender period or arises from an issue which was raised but has not been addressed by an amendment or update issued by Network Rail), Network Rail reserves the right to treat the relevant tender response as non-compliant.

Terms and conditions

- The terms and conditions of the Contract provided as part of the associated tender documents have been carefully developed and Network Rail does not therefore expect comments or requests for amendments to, or a mark-up of the terms and conditions and the Potential Supplier will be expected to sign up to the terms and conditions in the same form as included as part of the associated tender documents.
- If a Potential Supplier wishes to raise any clarification question in respect of the terms and conditions, it must do so in accordance with the clarification process set out in this document.
- In submitting its tender response, the Potential Supplier confirms its acceptance of the terms and condition (as issued with the associated tender documents or as may be updated by Network Rail as described above) and its acceptance to therefore enter into a contractual relationship on such terms.
- If the tender submission qualifies or marks up the terms and conditions (as issued with the associated tender documents or as may be updated by Network Rail as described above), such submission may be deemed to be non-compliant resulting in disqualification of that tender from this Procurement.

As with any procurement exercise, a shortlisted Potential Supplier in submitting their price for evaluation does so in acceptance of all business risks and circumstances arising from time to time.

Potential Suppliers are reminded that variant bids are not permitted, and Network Rail shall not therefore be accepting any form of variant bid as part of this process.

Where the bidding model or any related information differs from the information provided by the Potential Supplier to date (including that submitted at the PSQ stage) then, it must notify Network Rail immediately and provide updated information so that a further assessment (including where

relevant, an assessment against the conditions of participation criteria) can be carried out in respect of the new information provided. Network Rail reserves the right to exclude the Potential Supplier or require the replacement of any entity relied on prior to any award of contract, based on an assessment of the updated information.

Phase 4 - Evaluation and Moderation of tenders

Tender responses will be checked for completeness and compliance. Tender responses which are not complete, which are non-compliant and/or are late may be rejected and Network Rail shall not be obliged to continue its evaluation of the tender responses of that Potential Supplier.

For each of the questions, the shortlisted Potential Supplier's response will be assessed as per the methodology in Appendix C. This stage will involve an evaluation and a moderation process resulting in an agreed score which will be weighted according to the designated weight of the question. All weighted scores will be rounded to 2 decimal places.

A proportional vs best price evaluation is utilised. Where a zero-value response is part of a compliant offering, a nominal value of £1 will be attributed for evaluation purposes.

Network Rail may raise clarification questions with a Potential Supplier at any time which will be communicated by Network Rail to the relevant Potential Supplier, who must respond within the time indicated by Network Rail.

Where any shortlisted potential supplier does not meet the minimum criteria specified for any question, section or envelope they will be excluded from the Procurement. **In particular, Potential Suppliers should note certain questions within the Technical Envelope carry a minimum score; if a Potential Supplier scores below 2 on any of these questions they will be excluded from the Procurement.**

Where there is a need to normalise tenders for comparison purposes, Network Rail will provide details of the proposed adjustment to the Potential Suppliers prior to the relevant Tender being adjusted.

Shortlisted Potential Suppliers will have their tender responses ranked by reference to their total weighted score identified through the assessment process above, with the highest scoring tender being identified as the most advantageous tender.

It is the intention of Network Rail to award a contract to the Potential Supplier that submitted the most advantageous tender.

In the event of two or more shortlisted Potential Suppliers achieving identical total weighted scores for their tender to two decimal places for the first-place position, the following tests shall be applied (in descending order) until the successful supplier is identified:

- The shortlisted Potential Supplier with the highest Technical combined score shall be deemed the successful supplier;
- The shortlisted Potential Supplier with the highest Methodology combined score References 2.1.1, 2.1.2 & 2.1.3 score shall be deemed the successful supplier;
- The shortlisted Potential Supplier with the highest Safety combined score References 2.2.1 & 2.2.2 score shall be deemed the successful supplier;
- The shortlisted Potential Supplier with the highest Commercial score shall be deemed to be the successful supplier.

Network Rail reserves the right to disregard any tender that offers a price that Network Rail considers to be abnormally low for the performance of the Contract. Before disregarding any tender on this basis, Network Rail will notify the relevant Potential Supplier that Network Rail considers the price to be abnormally low and provide the shortlisted Potential Supplier with an opportunity to demonstrate that it will be able to perform Contract for the price offered. Where the shortlisted Potential Supplier does not demonstrate to Network Rail's satisfaction that it will be able to perform the Contract for the price offered, Network Rail may reject the tender.

Due diligence

Network Rail intends to:

- undertake checks to ensure that the successful supplier (and all relevant entities forming part of the successful supplier's bid team) continues to meet the requirements of the PSQ stage. Network Rail reserves the right, in its sole discretion, to exclude a Potential Supplier prior to award where it fails to satisfy the conditions of participation criteria or, if as a result of changes occurred, the Potential Supplier would not have been selected to submit a tender; and
- undertake checks, where a successful supplier comprises a group of entities (including consortia or other Associated Persons), to ensure that there is evidence of written agreements or other inter-party arrangements between the parties that confirm commitments to deliver the relevant tasks under the Contract.

Appendix A: Procurement terms and conditions

Procedural requirements

1. This document together with all associated tender documents provided to Potential Suppliers in connection with this Procurement contain procedural requirements which Potential Suppliers must follow.

2. **FAILURE TO COMPLY WITH THE TIMESCALES, FULLY COMPLETE THE DOCUMENTS, PROVIDE ALL THE INFORMATION REQUIRED OR MEET ANY OF THE REQUIREMENTS IN THIS DOCUMENT AND THE ASSOCIATED TENDER DOCUMENTS, OR ANY MISREPRESENTATION OF INFORMATION BY THE POTENTIAL SUPPLIER OR FAILURE TO COMPLY WITH NETWORK RAIL'S CONFIDENTIALITY REQUIREMENTS FOR WHATEVER REASON, MAY RESULT IN THE POTENTIAL SUPPLIER'S EXCLUSION FROM THIS PROCUREMENT AND THEIR RESPONSE NOT BEING CONSIDERED BY NETWORK RAIL.**

Central Digital Platform

3. Potential Suppliers that wish to participate in this Procurement are responsible for ensuring that the Central Digital Platform contains complete, accurate and up-to-date information about their organisation and any Associated Persons which are relevant for the purposes of this Procurement. Potential Suppliers must notify Network Rail immediately if it is unable to register on the Central Digital Platform and/or provide accurate and up-to-date information via the Central Digital Platform.

Transparency

4. Potential Suppliers should note that, in accordance with general transparency obligations and procurement law obligations under the Procurement Act, Network Rail routinely publishes details of its procurement processes and awarded contracts. This includes, but is not limited to, the contract value, the identity of the successful supplier's compliance with payment obligations and contract performance. Compliance with these obligations will involve Network Rail taking steps without consultation with Potential Suppliers. Where required under the Procurement Act, a copy of the contract will be published (subject to making any reasonable and proportionate redactions permitted under the Procurement Act).

5. All central government departments and their executive agencies and non-departmental public bodies are subject to controls and reporting within government. In particular, they report to various government bodies including but not limited to the Cabinet Office and HM Treasury for all expenditure. Network Rail reserves its absolute right to share with government any of the documentation/information submitted by Potential Suppliers during this Procurement (including any information that a Potential Supplier considers to be confidential and/or commercially sensitive).

6. Where required, Network Rail will disclose on a confidential basis any information it receives from Potential Suppliers during the Procurement to any third party engaged by Network Rail for the specific purpose of assessing or assisting Network Rail in assessing the Potential Supplier's submission. In providing such information the Potential Supplier consents to such disclosure.

Modifying the Procurement

7. Neither the Tender Notice, this document nor any information given as part of the Procurement shall be regarded as a commitment or representation on the part of Network Rail (or any other person) to enter into a contractual agreement.

8. Network Rail reserves the right to cancel the Procurement at any point and/or to choose not to award any contract as a result of this Procurement.

9. Potential Suppliers will remain responsible for all costs and expenses incurred by them, their staff, and their advisers or by any third party acting under their instructions in connection with this Procurement. For the avoidance of doubt, Network Rail is not liable for any costs or expenditure resulting from any cancellation or amendment of this Procurement.

10. Network Rail reserves the right at any time:

    a. to issue amendments, modifications or additional information to any documentation which forms part of this Procurement, including the Procurement terms and conditions contained in this Appendix A;
    b. to require a Potential Supplier to clarify their proposal(s) and/or tender submission in via the Bravo Portal
    c. to alter the Procurement Timetable for this Procurement
    d. to rewind and re-run any part of the Procurement
    e. to amend the Procurement as described herein, including the number of stages and the number of Potential Supplier to be selected at any stage

Confidentiality and publicity

11. Save to the extent made publicly available by Network Rail, the information in this document (together with all attachments and any other information communicated to Potential Suppliers during the Procurement) is made available on the condition that it is treated as confidential information by the Potential Supplier and is not disclosed, copied, reproduced, distributed or passed to any other person at any time except in order to comply with legal obligations or for the purpose of enabling a submission to be made to Network Rail, provided that such person has given an undertaking prior to the receipt of the relevant information (and for the benefit of Network Rail) to keep such information confidential.

12. Potential Suppliers must not take part in any publicity activities with any part of the media about this Procurement without obtaining the express prior written agreement of the Network Rail. When requesting prior written agreement, Potential Suppliers are required to detail the proposed media coverage including format and content of any publicity and submit the request via the Bravo Portal.

Freedom of information and environmental information

13. Network Rail is subject to the Freedom of Information Act 2000 (FOIA) and the Environmental Information Regulations 2004 (EIR). All information submitted to Network Rail may be disclosed in response to a request made pursuant to the FOIA or the EIR.

14. In respect of any information submitted by a Potential Supplier that it considers to be commercially sensitive, the Potential Supplier should:

    a. clearly identify which information is considered commercially sensitive
    b. explain the potential implications of disclosure of such information
    c. provide an estimate of the period of time for which the Potential Supplier considers that such information will remain commercially sensitive

15. Network Rail will endeavour to consult with a Potential Supplier about commercially sensitive information before making a decision on any FOIA requests and EIR requests received

16. Potential Suppliers should note, however, that the final decision on any FOIA request and EIR request rests with Network Rail, subject to applicable law. Even where information is identified as commercially sensitive, unless an exemption/exception provided for under the FOIA/EIR is applicable, Network Rail will be obliged to disclose that information in response to a request. Accordingly, Network Rail cannot guarantee that any information marked ‘commercially sensitive’ will not be disclosed.

Requirements on sub-contractors and consortia

17. If requested to do so by Network Rail, a Potential Supplier will be required to enter into a legal arrangement with other members of a consortium or with any parties which are relied on in order to satisfy the conditions of participation relating to this Procurement (in accordance with section 72 of the Procurement Act). Acceptance of this request shall be considered a mandatory requirement and failure to accept the same may result in the Potential Supplier’s exclusion from the Procurement.

Parent company guarantee or other securities

18. Network Rail reserves the right to require a parent company guarantee or alternative equivalent form of security should the Potential Supplier be successful in this Procurement.

19. The right for Network Rail to require a guarantee or alternative equivalent form of security pursuant to paragraph 18 is a general right and is separate to any guarantee which may be required to be provided by an associated supplier where the Potential Supplier relies on that supplier to satisfy the conditions of participation in respect of financial capacity.

20. Network Rail may request a legal opinion from an independent firm of lawyers practising in the relevant jurisdiction (at the Potential Supplier's own cost and expense) as to the capacity/authority of the parent company to enter into the parent company guarantee and the enforceability of the terms of the parent company guarantee in the relevant jurisdiction.

21. In respect of a guarantee which may be provided by an associated supplier in order for the Potential Supplier to satisfy the conditions of participation in respect of financial capacity, Network Rail may specify minimum contractual financial security requirements as appropriate having regard to the financial assessment undertaken during this Procurement. Where Network Rail specifies any financial security requirements, acceptance of the requirements shall be considered a mandatory condition and failure to accept the same may result in the Potential Supplier's exclusion from the Procurement.

Non-collusion, non-canvassing

22. **Any attempt by a Potential Supplier (including any members of their bidding team) or their advisers to influence the Procurement in any way, may result in the exclusion of the Potential Supplier, without prejudice to any other civil or legal remedies available to Network Rail and without prejudice to any criminal liability that such conduct by a Potential Supplier may attract**.

23. Specifically, Potential Suppliers must not directly or indirectly at any time:

    a. devise or amend the content of their submissions in accordance with any agreement or arrangement with any other person, other than in good faith with a person who is a proposed partner, subcontractor, consortium member insurance provider or provider of finance
    b. enter into any agreement or arrangement with any other person as to the form or content of any other submission or offer to pay any sum of money or valuable consideration to any person to effect changes to the form or content of any other submission
    c. enter into any agreement or arrangement with any other person that has the effect of prohibiting or excluding that person from submitting a response in this Procurement
    d. canvass any employees, members or agents of Network Rail in relation to this Procurement
    e. attempt to obtain information from any of the employees, members or agents of Network Rail or their advisors concerning another Potential Supplier or submission

f. carry out any other co-operation or collusion with another Potential Supplier or any other person which Network Rail considers capable of undermining fair competition

g. contacts any employee of Network Rail prior to the contract being awarded about any aspect of the contract in a manner not permitted in this document and any associated tender documents (including without limitation a contact for the purposes of discussing the possible transfer to the employment of the Potential Supplier of any such employee)

24. Potential Suppliers are required to complete and return the certificate of non-collusion and non-canvassing noting that Network Rail will be entitled to rely on the information provided in the certificate.

Conflicts of interest

25. Potential Suppliers are responsible for notifying Network Rail immediately of any actual, potential or perceived conflict of interest via the Bravo Portal.

26. In the event of any actual, potential or perceived conflict of interest, Network Rail shall in its absolute discretion decide on the appropriate course of action. Network Rail reserves the right to:

    a. exclude any Potential Supplier that fails to notify the Network Rail of an actual, potential or perceived conflict of interest, or where an actual conflict of interest exists

    b. exclude any Potential Supplier where there is an actual, potential or perceived conflict that cannot be mitigated

    c. request further information from any Potential Supplier and require any Potential Supplier to take reasonable steps to mitigate a conflict of interest. This may include requiring any Potential Supplier to enter into a specific conflict of interest agreement with the Network Rail. Failure to do so may result in the Potential Supplier being excluded from participating in, or progressing as part of, the Procurement process

27. Bidding in multiple capacities

    a. How and with whom a Potential Supplier wishes to bid is entirely a matter for each Potential Supplier. Any supplier engaged in this Procurement in whatever capacity will need to ensure it is complying with its legal responsibilities and will need to be mindful of the risk of creating (whether inadvertently, accidentally or otherwise) any situation (whether through its arrangements, actions, omissions or otherwise) which may entitle Network Rail to consider excluding that supplier, such as conflicts of interest, disclosure of confidential information which would provide an undue advantage, collusion or other arrangement which would distort competition.

b. Network Rail has considered whether it is appropriate to impose limitations on participation in this Procurement but has chosen not to restrict appearance of a supplier in multiple bid teams subject to the following conditions in this paragraph 27.

c. A supplier (or any other entity in the same corporate group unless it is demonstrated conclusively that they are acting autonomously, wholly independently and with no prospect of influence – see paragraph (d) below) is not permitted to participate in the role of a Potential Supplier (whether as a single supplier or part of a consortium) in more than one PSQ and/or tender response in this Procurement.

d. Suppliers within the same corporate group or affiliated companies that wish to be involved in different PSQ responses and/or tender responses (in whatever capacity) are only permitted to do so if they act, at all times, autonomously and independently and provide appropriate evidence (including without limitation copies of any relevant agreements between entities) to demonstrate to Network Rail's satisfaction that it is able to manage the risk or potential or perceived risk without prejudice to this Procurement or the Contract. Should Network Rail suspect that relationships between group or affiliate companies in separate PSQ and/or tender responses means that they have not acted independently and autonomously and/or evidence to demonstrate otherwise is not provided, that Potential Supplier or those suppliers may be disqualified from this Procurement.

e. A supplier may participate within this Procurement in the following multiple capacities:

   i. in **the role of a Potential Supplier (whether as a single supplier or part of a consortium) and at an Associated Person sub-contractor level**: a supplier may be participating in this Procurement in its own right (as a standalone Potential Supplier or a member of a consortium Potential Supplier but not both – see paragraph (c) above) and also be relied upon as a sub-contractor by another Potential Supplier in order for that other Potential Supplier to compile its response to and meet the requirements of the PSQ stage and, if shortlisted for the tender stage, for that other Potential Supplier to compile its response to and meet the requirements of the tender stage;

   ii. at **Associated Person sub-contractor level**: the same supplier may be a proposed sub-contractor being relied upon by more than one Potential Supplier (whether a standalone Potential Supplier or a consortium Potential Supplier) in order for each relevant Potential Supplier to pre-qualify within this Procurement and consequently prepare its tender; and

   iii. at **sub-contractor level but not an Associated Person**: the same supplier may form part of one or more Potential Supplier's identified supply chain but is not being relied upon by the relevant Potential Supplier in order for each relevant Potential Supplier to pre-qualify for this Procurement and consequently prepare its tender.

f. Where a supplier is participating in multiple capacities (as permitted by this paragraph 27), Network Rail requires each of the following principles be observed and applied at all times in connection with any involvement (in whatever capacity) in the Procurement:

   i. each supplier to understand the importance of the provisions of paragraph 27 and the consequences in the event that these are not observed; and

   ii. each entity to ensure appropriate measures are put in place from the outset of this Procurement to protect disclosure of information (including appropriate information barriers) outside of the relevant bid team and ringfence the individual bid teams (with the term "ringfence" indicating that each of the personnel shall not assist in developing or appear in support of or otherwise be involved in more than one PSQ/tender response in whatever capacity or role).

g. Network Rail reserves the right to exclude a Potential Supplier (or require the exclusion of the relevant supplier as appropriate in the circumstances) if it is not satisfied that the explanation and proposed measures pursuant to paragraph (f) are satisfactory to effectively prevent, identify and remedy any conflicts of interest, obtaining of confidential information and/or avoid any distortion of competition.

Intellectual property

28. Potential Suppliers are reminded that all intellectual property rights, including copyright, in the documents and materials supplied by Network Rail and/or its advisers in this Procurement, in whatever format, belong to Network Rail, its advisers or the relevant owner/licensor. Potential Suppliers shall not copy, reproduce, distribute or otherwise make available any part of these documents to any third party (except for the purpose of preparing a submission) without the prior written consent of Network Rail. Via the Bravo Portal. All documentation supplied by Network Rail in relation to this Procurement must be returned or destroyed on demand, without any copies being retained by Potential Suppliers.

Ethical walls agreement

29. As a condition of participating in this Procurement, Potential Suppliers may on request of Network Rail, be required to sign and return a copy of the ethical walls agreement. Any Potential Supplier that fails to comply with this request by Network Rail, may be disqualified from the Procurement at the discretion of Network Rail.

Anti-competitive behaviour

30. A Potential Supplier, including each member of its bidding team, are responsible for compliance with their obligations under applicable competition laws. Network Rail may require evidence from Potential Suppliers that their arrangements are not anti-competitive and reserves the right to require any Potential Supplier to comply with any reasonable measures which may be needed to verify that no anti-competitive arrangements are in place.

31. Any evidence of anti-competitive behaviour may result in a Potential Supplier being excluded from participation in this Procurement. Network Rail also reserves the right to refer any suspected breaches of applicable competition laws to the relevant authorities including, but not limited to, the Competition and Markets Authority and the Serious Fraud Office.

32. Potential Suppliers should note that anti-competitive behaviour may result in the Potential Supplier being excluded from bidding for contracts under Schedule 7, Paragraph 7 of the Procurement Act. Where a relevant decision has been made by the Competition and Markets Authority under the Competition Act 1998, the Potential Supplier may also be excluded from bidding for contracts under Schedule 6, paragraph 41 and may be added to the debarment list and/or be liable for civil and/or criminal penalties.

Contract

33. Notification of an award decision does not constitute acceptance of an offer by Network Rail. Any document submitted by a Potential Supplier shall only have contractual effect when it is contained within an executed written contract.

34. The shortlisted Potential Supplier's l tender submission must remain valid for acceptance for a period of 240 days from the date of its submission or until any procurement challenge/s have been resolved.

Potential Supplier withdrawal

35. In the event that a Potential Supplier withdraws from the Procurement during the tender stage, Network Rail reserves the right (but shall not be obliged) to invite the next highest ranked Potential Supplier that submitted a valid response to the PSQ but which attained a score that was not sufficiently high for it to be shortlisted, to be re-instated in the Procurement and invited to submit a tender.

Modifying your responses

36. Potential Suppliers may modify their submitted responses prior to the submission deadline. (Network Rail will not open any submissions until after the submission deadline set out in the Procurement Timetable.)

Potential Supplier eligibility

37. Potential Suppliers are reminded that the eligibility requirements in this document, Tender Notice and all other associated tender documents apply to the Procurement at all times.

38. Network Rail reserves the right to require any Potential Supplier to provide such further information as Network Rail may require (and for the avoidance of doubt, Network Rail may make multiple requests) as to any issue addressed in this document and/or any associated tender document, including, but not limited to, the economic and financial standing of the Potential Supplier at any stage of the Procurement and prior to the notification of the award decision and/or the award of the contract.

39. Network Rail must be notified immediately in writing via Bravo promptly of any changes in the information that the Potential Supplier has provided in any response to this Procurement (including but not limited to arrangements in relation to any Associated Persons) so that Network Rail may assess whether the Potential Supplier continues to satisfy the relevant conditions of participation and should continue to qualify for participation in the Procurement. For the avoidance of doubt, Network Rail reserves the right to take such action as it deems appropriate where a Potential Supplier fails to disclose any change or in the light of its assessment of any updated information, including (but not limited to) excluding the Potential Supplier concerned from the Procurement.

Potential Supplier warranties

40. In responding to this procurement, the Potential Supplier warrants, represents and undertakes to Network Rail that:

    a. it understands and has complied with the conditions set out in this document

    b. all information, representations and other matters of fact communicated (whether in writing or otherwise) to the Network Rail by the Potential Supplier, its staff or agents in connection with or arising out of the Procurement are true, complete and accurate in all respects, both as at the date communicated and as at the date of the submission of the relevant response to this document

    c. it has made its own investigations and undertaken its own research and due diligence, and has satisfied itself in respect of all matters (whether actual or contingent) relating to the Procurement and has not submitted its response in reliance on any information, representation or assumption which may have been made by or on behalf of Network Rail (with the exception of any information which is expressly warranted by Network Rail); and

    d. it has full power and authority to respond to this document and to perform the obligations in relation to the contract and will, if requested, promptly produce evidence of such to the Network Rail

41. Potential Suppliers should note that the potential consequences of providing incomplete, inaccurate or misleading information include that:

    a. Network Rail may exclude the Potential Supplier from participating in this Procurement

    b. the Potential Supplier may be excluded from bidding for contracts under Schedule 7, Paragraph 13 of the Procurement Act

c. Network Rail may rescind any resulting contract under the Misrepresentation Act 1967 and may sue the Potential Supplier for damages

d. if fraud or fraudulent intent can be proved, the Potential Supplier may be prosecuted and convicted of the offence of fraud by false representation under section 2 of the Fraud Act 2006, which can carry a sentence of up to 10 years or a fine (or both) – if there is a conviction, then the Potential Supplier may be excluded from bidding for contracts under Schedule 6, Paragraph 15 of the Procurement Act and may be added to the debarment list

Third parties

42. Nothing in these terms is intended to confer any rights on any third party under the Contracts (Rights of Third Parties) Act 1999. This does not affect any right or remedy of any person which exists or is available apart from that Act.

Applicable law

43. The law of England and Wales is applicable to this Procurement.

44. Potential Suppliers must agree to submit to the exclusive jurisdiction of the Courts of England and Wales in relation to any dispute arising out of or in connection with this Procurement.

Appendix B – Conditions of Participation Criteria

Qualification Envelope

Question	Description	Weighting	Type	Criteria
1.1 Preliminary Questions				
1.1.1 Supplier Name	Please provide your supplier name	n/a	Information Only	n/a
1.1.2 CDP – Registration	You must be registered on the central digital platform (CDP). What is your central digital platform unique identifier?	n/a	Information Only	n/a
1.1.3 Bidding Model	Please confirm if you are bidding as a single supplier (with or without sub-contractors) or as part of a group or consortium. If you are bidding as part of a group or consortium (including where you intend to establish a legal entity to deliver the contract), please provide: a. the name of the group/consortium b. the proposed structure of the group/consortium, including the legal structure where applicable c. the name of the lead member in the group/consortium	n/a	Information Only	n/a

Question	Description	Weighting	Type	Criteria
	d. your role in the group/consortium (e.g. lead member, consortium member)			
1.1.4 Debarment List	Are you on the debarment list?	n/a	Pass/Fail	If applicable, Network Rail will determine whether a Potential Supplier is an excluded supplier or an excludable supplier by virtue of the Potential Supplier or any of its connected persons (as applicable) being on the debarment list, in accordance with the Procurement Act. The mandatory exclusion grounds are set out in Schedule 6 of the Procurement Act. The discretionary exclusion grounds are set out in Schedule 7 of the Procurement Act. **Pass** = the Potential Supplier and its connected persons are not listed on the debarment list for any mandatory or discretionary exclusion grounds OR the Potential Supplier and its connected persons are not listed on the debarment list for any mandatory exclusion ground. However, the Potential Supplier or a connected person (as applicable) is listed on the debarment list for a

Question	Description	Weighting	Type	Criteria
				discretionary exclusion ground but Network Rail exercises its discretion to permit the Potential Supplier to participate **Fail** = the Potential Supplier or a connected person is listed on the debarment list for a mandatory exclusion ground OR the Potential Supplier and its connected persons are not listed on the debarment list for any mandatory exclusion ground but the Potential Supplier or a connected person (as applicable) is listed on the debarment list for a discretionary exclusion ground and Network Rail exercises its discretion to exclude the Potential Supplier
1.1.5 Debarment List (Follow Up)	If yes, please insert details.	n/a	Text	This question is to validate the question above
1.2 Part 1 Core Supplier Information				
1.2.1 CDP – Information Sharing	You must submit up-to-date core supplier information on the CDP and share this with information with us via the CDP (either a share code or PDF download).	n/a	Pass/Fail	If applicable, Network Rail will determine whether a Potential Supplier is an excluded supplier or an excludable supplier (including as a result of a connected person (as applicable)) by

Question	Description	Weighting	Type	Criteria
	This includes: a. basic information b. economic and financial standing information c. connected person information (these are persons with the right to exercise, or who actually exercise, significant influence or control over the supplier, or over whom the supplier has the right to exercise, or actually exercises, significant influence or control over, for example: directors, majority shareholders and parent and subsidiary companies) d. exclusion grounds information Please confirm you have shared this information with us.			virtue of an exclusion ground applying, in accordance with the Procurement Act. The mandatory exclusion grounds are set out in Schedule 6 of the Procurement Act. The discretionary exclusion grounds are set out in Schedule 7 of the Procurement Act. Prior to determining whether a Potential Supplier is an excluded supplier or excludable supplier, Network Rail will give the Potential Supplier a reasonable opportunity to make representations and provide evidence in relation to the relevant exclusion ground and whether the circumstances are continuing or likely to occur again and Network Rail may have had regard to any self-cleaning matters listed in section 58(1) of the Procurement Act. **Pass** = the Potential Supplier and its connected persons (as applicable) are not subject to any mandatory or discretionary exclusion grounds OR

Question	Description	Weighting	Type	Criteria
				an exclusion ground does apply to the Potential Supplier or a connected person (as applicable) and: (i) Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are not continuing or likely to occur again; or (ii) the relevant ground is a discretionary exclusion ground and Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are continuing or likely to occur again but Network Rail exercises its discretion to permit the Potential Supplier to participate **Fail** = the Potential Supplier or a connected person is subject to a mandatory exclusion ground and Network Rail considers the circumstances giving rise to the application of the exclusion

Question	Description	Weighting	Type	Criteria
				ground are continuing or likely to occur again OR the Potential Supplier or a connected person (as applicable) is subject to a discretionary exclusion ground and (i) Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are continuing or likely to occur again; and (ii) Network Rail exercises its discretion to exclude the Potential Supplier
1.3 Part 2 Additional Exclusions Information				
1.3.1 Part 2A Exclusions information about the Supplier's Associated Persons				
1.3.2 Associated Persons	Are you relying on any associated persons to satisfy the conditions of participation? (these are other suppliers who might be sub-contractors or consortium members but not a guarantor). The conditions of participation are outlined in Part 3. If so, please complete 1.3.3, 1.3.4, 1.3.5 & 1.3.6 (otherwise 1.3.3, 1.3.4, 1.3.5 & 1.3.6 are not applicable).	n/a	Information Only	n/a

Question	Description	Weighting	Type	Criteria
1.3.3 Associated Persons – Conditions of Participation	For each associated person, please confirm which condition(s) of participation you are relying on them to satisfy [Name of supplier and brief description]	n/a	Information Only	n/a
1.3.4 Associated Persons – CDP Registration	For each associated person, you must confirm they are registered on the CDP and have shared with us their information (as a PDF download): a. basic information b. economic and financial standing information (if they are being relied upon to meet conditions of participation regarding financial capacity) c. connected person information d. exclusion grounds information	n/a	Pass/Fail	If applicable, Network Rail will determine whether a Potential Supplier is an excluded supplier or an excludable supplier as a result of an exclusion ground applying to an associated person (or an associated person's connected person (as applicable)), in accordance with the Procurement Act. The mandatory exclusion grounds are set out in Schedule 6 of the Procurement Act. The discretionary exclusion grounds are set out in Schedule 7 of the Procurement Act. Prior to determining whether a Potential Supplier is an excluded supplier or excludable supplier by virtue of an exclusion ground applying to an associated person (or the associated person's connected person (as applicable)), Network Rail will give the Potential Supplier a reasonable opportunity to make representations and provide evidence in relation to the

Question	Description	Weighting	Type	Criteria
				relevant exclusion ground and whether the circumstances are continuing or likely to occur again and Network Rail may have had regard to any self-cleaning matters listed in section 58(1) of the Procurement Act. Where the Potential Supplier is an excluded supplier or an excludable supplier only by virtue of an associated person (or the associated person's connected person (as applicable)), Network Rail will provide the Potential Supplier with an opportunity to replace the associated person; references to the "associated person" in the criteria below therefore refers to the original associated person or, if applicable, any replacement offered by the Potential Supplier. The Potential Supplier will achieve a **Pass** where = the associated person (or any of its connected persons (as applicable)) is not subject to any mandatory or discretionary exclusion grounds OR

Question	Description	Weighting	Type	Criteria
				an exclusion ground does apply to an associated person (or a connected person (as applicable)) and: (i) Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are not continuing or likely to occur again; or (ii) the relevant ground is a discretionary exclusion ground and Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are continuing or likely to occur again but Network Rail exercises its discretion to permit the associated person to participate The Potential Supplier will achieve a **Fail** where = the associated person (or any of its connected persons (as applicable)) is subject to a mandatory exclusion ground and Network Rail considers the circumstances giving rise to the

Question	Description	Weighting	Type	Criteria
				application of the exclusion ground are continuing or likely to occur again OR the associated person (or any of its connected persons (as applicable)) is subject to a discretionary exclusion ground and (i) Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are continuing or likely to occur again; and (ii) Network Rail exercises its discretion to exclude the associated person
1.3.5 Associated Persons – Debarment List	Are any of your associated persons on the debarment list?	n/a	Pass/Fail	If applicable, Network Rail will determine whether a Potential Supplier is an excluded supplier or an excludable supplier by virtue of an associated person (or an associated person's connected person (as applicable)) being on the debarment list, in accordance with the Procurement Act. The mandatory exclusion grounds are set out in Schedule 6 of the Procurement Act. The discretionary exclusion grounds are set out in Schedule 7 of the Procurement Act.

Question	Description	Weighting	Type	Criteria
				Where the Potential Supplier is an excluded supplier or an excludable supplier only by virtue of an associated person (or an associated person's connected person (as applicable)) being on the debarment list, Network Rail will provide the Potential Supplier with an opportunity to replace the associated person; references to the "associated person" in the criteria below therefore refers to the original associated person or, if applicable, any replacement offered by the Potential Supplier The Potential Supplier will achieve a **Pass** where = the associated person(s) (or an associated person's connected person (as applicable)) is not listed on the debarment list for any mandatory or discretionary exclusion grounds OR an associated person (or an associated person's connected person (as applicable)) is not listed on the debarment list for any mandatory exclusion ground. However, an associated person (or an associated

Question	Description	Weighting	Type	Criteria
				person's connected person (as applicable)) is listed on the debarment list for a discretionary exclusion ground but Network Rail exercises its discretion to permit the associated person to participate The Potential Supplier will achieve a **Fail** where = the associated person(s) (or an associated person's connected person (as applicable)) is listed on the debarment list for a mandatory exclusion ground OR an associated person (or an associated person's connected person (as applicable)) is not listed on the debarment list for any mandatory exclusion ground but is listed on the debarment list for a discretionary exclusion ground and Network Rail exercises its discretion to exclude the associated person
1.3.6 Associated Persons – Debarment List (Follow Up)	If yes, provide details.	n/a	Text	This question is to validate the question above
1.3.7 Part 2B List of all intended sub-contractors				

Question	Description	Weighting	Type	Criteria
1.3.8 Intended Sub Contractors	Please provide: a. a list of all suppliers who you intend to sub-contract the performance of all or part of the contract to (either directly or in your wider supply chain) b. their unique identifier (if they are registered on the CDP), or otherwise, a Companies House number charity number, VAT registration number, or equivalent c. a brief description of their intended role in the performance of the contract If you are not intending to sub-contract the performance of all or part of the contract, then this question, 1.3.9, 1.3.10 & 1.3.11 are not applicable. In response to this question, the Potential Supplier should provide details for all known sub-contractors (other than associated persons which are covered by questions in Part 2A above. This applies to all sub-contractors (**of all tiers**) the Potential Supplier intends to sub-contract delivery to, and enables Network Rail to check whether any of the intended sub-contractors are on the debarment list.	n/a	Information Only	n/a

Question	Description	Weighting	Type	Criteria
	Potential Suppliers should encourage their sub-contractors to register on the CDP to gain a unique identifier so that the Potential Supplier can provide their information via the platform as well, but this information can also be provided directly by the Potential Supplier and not via the platform			
1.3.9 Intended Significant Sub Contractors	Network Rail is also requesting further information about intended sub-contractors that are **Significant Sub-Contractors** in order to determine whether any of the Significant Sub-Contractors are excluded or excludable suppliers (in addition to checking them against the debarment list). For each Significant Sub-Contractor (other than an associated person which is already covered by Part 2A above), you must confirm if they are registered on the CDP and have shared with us their information (as a PDF download) or provide this information directly including a self-declaration as to whether any mandatory or discretionary exclusion grounds apply to the relevant sub-contractor and, if relevant, to provide any additional information, such as details of self-cleaning: a. basic information	n/a	Pass/Fail	If applicable, Network Rail will determine whether a Potential Supplier is an excluded supplier or an excludable supplier as a result of an exclusion ground applying to a Significant Sub-Contractor (or a Significant Sub-Contractor's connected person (as applicable)), in accordance with the Procurement Act. The mandatory exclusion grounds are set out in Schedule 6 of the Procurement Act. The discretionary exclusion grounds are set out in Schedule 7 of the Procurement Act. Prior to determining whether a Potential Supplier is an excluded supplier or excludable supplier by virtue of an exclusion ground applying to a Significant Sub-Contractor (or a Significant Sub-Contractor's connected

Question	Description	Weighting	Type	Criteria
	b. connected person information c. exclusion grounds information			person (as applicable)), Network Rail will give the Potential Supplier a reasonable opportunity to make representations and provide evidence in relation to the relevant exclusion ground and whether the circumstances are continuing or likely to occur again and Network Rail may have had regard to any self-cleaning matters listed in section 58(1) of the Procurement Act. Where the Potential Supplier is an excluded supplier or an excludable supplier only by virtue of a Significant Sub-Contractor (or a Significant Sub-Contractor's connected person (as applicable)), Network Rail will provide the Potential Supplier with an opportunity to replace the Significant Sub-Contractor; references to the "Significant Sub-Contractor" in the criteria below therefore refers to the original Significant Sub-Contractor or, if applicable, any replacement offered by the Potential Supplier The Potential Supplier will achieve a **Pass** where =

Question	Description	Weighting	Type	Criteria
				the Significant Sub-Contractor (or any of its connected persons (as applicable)) is not subject to any mandatory or discretionary exclusion grounds OR an exclusion ground does apply to a Significant Sub-Contractor (or a connected person (as applicable)) and: (i) Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are not continuing or likely to occur again; or (ii) the relevant ground is a discretionary exclusion ground and Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are continuing or likely to occur again but Network Rail exercises its discretion to permit the Significant Sub-Contractor to participate

Question	Description	Weighting	Type	Criteria
				The Potential Supplier will achieve a **Fail** where = the Significant Sub-Contractor (or any of its connected persons (as applicable)) is subject to a mandatory exclusion ground and Network Rail considers the circumstances giving rise to the application of the exclusion ground are continuing or likely to occur again OR the Significant Sub-Contractor (or any of its connected persons (as applicable)) is subject to a discretionary exclusion ground and (i) Network Rail considers the circumstances giving rise to the application of the relevant exclusion ground are continuing or likely to occur again; and (ii) Network Rail exercises its discretion to exclude the Significant Sub-Contractor
1.3.10 Intended Sub Contractors – Debarment List	Are any of your intended sub-contractors (that is not also an associated person and therefore covered by Part 2A above) on the debarment list?	n/a	Pass/Fail	If applicable, Network Rail will determine whether a Potential Supplier is an excluded supplier or an excludable supplier by virtue of an intended sub-contractor (or an intended subcontractor's connected person (as applicable)) being on the debarment list,

Question	Description	Weighting	Type	Criteria
				in accordance with the Procurement Act. The mandatory exclusion grounds are set out in Schedule 6 of the Procurement Act. The discretionary exclusion grounds are set out in Schedule 7 of the Procurement Act. Where the Potential Supplier is an excluded supplier or an excludable supplier only by virtue of an intended sub-contractor (or an intended subcontractor's connected person (as applicable)) being on the debarment list, Network Rail will provide the Potential Supplier with an opportunity to replace the intended sub-contractor; references to the " intended sub-contractor" in the criteria below therefore refers to the original intended sub-contractor or, if applicable, any replacement offered by the Potential Supplier. The Potential Supplier will achieve a Pass where = the intended sub-contractor (or an intended subcontractor's connected person (as applicable)) is not listed on

Question	Description	Weighting	Type	Criteria
				the debarment list for any mandatory or discretionary exclusion grounds OR an intended sub-contractor person (or an intended subcontractor's connected person (as applicable)) is not listed on the debarment list for any mandatory exclusion ground. However, an intended sub-contractor (or an intended subcontractor's connected person (as applicable)) is listed on the debarment list for a discretionary exclusion ground but Network Rail exercises its discretion to permit the sub-contractor to participate The Potential Supplier will achieve a **Fail** where = an intended sub-contractor (or an intended subcontractor's connected person (as applicable)) is listed on the debarment list for a mandatory exclusion ground OR an intended sub-contractor (or an intended subcontractor's connected person (as applicable)) is not listed on

Question	Description	Weighting	Type	Criteria
				the debarment list for any mandatory exclusion ground but is listed on the debarment list for a discretionary exclusion ground and Network Rail exercises its discretion to exclude the sub-contractor.
1.3.11 Intended Sub Contractors – Debarment List (Follow Up)	If yes, provide details.	n/a	Information Only	This question is to validate the question above
Part 3A – Procurement Specific Questions				
1.4.1 Supplier Financial Health Score	Is your "Supplier Financial Health Model Score" greater than or equal to 40%.	n/a	Pass/Fail	A Potential Supplier will pass this question if they (or a guarantor or associated person) have a supplier financial health model score equal to or greater than the figure specified.
1.4.2 Supplier Financial Health Score (Attachment)	Please attach the populated spreadsheet showing your supplier financial health score.	n/a	Information only	This question is to validate the question above
1.4.3 Reliance on another supplier	Are you relying on another supplier to satisfy the economic and financial standing requirements? If so, please provide their name and evidence of their economic and financial standing, including evidence that they meet the criteria set out in the Supplier Financial Health Score Question.	n/a	Information Only	This question is to validate the supplier financial health score

Question	Description	Weighting	Type	Criteria
1.4.4 Insurances	Please confirm whether you already have, or can commit to obtain, prior to the award of the contract, the levels of insurance cover indicated below: ● Employer's (Compulsory) Liability Insurance = £10m ● Public Liability Insurance = £10m	n/a	Pass/Fail	A Potential Supplier will pass this question if they a) Provide evidence of all the insurances already in place; b) Provide evidence of some insurances in place, and the details of how the others will be in place by contract award; or c) Provide details of how the insurances will be in place by contract award Please note evidence of insurance will be checked prior to signature of any contract.
1.4.5 Details of insurances	Provide evidence of insurances already in place or which would be obtained following contract award, including information on how you will obtain the insurance – e.g. a quote.	n/a	Information Only	This question is to validate the question - Insurances
1.4.6 UK GDPR	Please confirm that you have in place, or that you will have in place by the award of the contract, the human and technical resources to perform the contract to ensure compliance with the UK General Data Protection Regulation and to ensure the protection of the rights of data subjects.	n/a	Pass/Fail	The Potential Supplier will pass this question where they confirm that they have, or will have in place the human and technical resources to perform the contract to ensure compliance with the UK General Data Protection Regulation

Question	Description	Weighting	Type	Criteria
				and to ensure the protection of the rights of data subjects.
1.4.7 UK GDPR (2)	Please provide details of the technical facilities and measures (including systems and processes) you have in place, or will have in place by contract award, to ensure compliance with UK data protection law and to ensure the protection of the rights of data subjects. Your response should include, but should not be limited to facilities and measures: ● to ensure ongoing confidentiality, integrity, availability and resilience of processing systems and services; ● to comply with the rights of data subjects in respect of receiving privacy information, and access, rectification, deletion and portability of personal data; ● to ensure that any consent based processing meets standards of active, informed consent, and that such consents are recorded and auditable; ● to ensure legal safeguards are in place to legitimise transfers of personal data outside the UK (if such transfers will take place);	n/a	Pass/Fail	The Potential Supplier will pass this question where they demonstrate that they have, or will have in place the technical facilities and measures to ensure compliance with UK data protection law and to ensure the protection of the rights of data subjects

Question	Description	Weighting	Type	Criteria
	● to maintain records of personal data processing activities; and ● to regularly test, assess and evaluate the effectiveness of the above measures.			
Part 3B – Compliance with PPNs				
1.5.1 Payment in Contracts 1.1	Please confirm if you intend to use a supply chain for this contract. References to supply chain (for payment related questions) means suppliers or sub-contractors of any tier that execute any works, supply any products or provide any services that are used wholly or substantially for the purpose of performing (or contributing to the performance of) the whole or any part of the contract. **Evidence for self-declarations (questions 1.2-1.4):** Prior to contract award, the following evidence will be required (where the Potential Supplier answered "yes" to question 1.1) to verify your responses: • Q1.2 - A copy of your standard payment terms for all of your supply chain contracts.	n/a	Yes/No	If you answer "No" to question 1.1, you do not need to complete questions 1.2, 1.3, 1.4 and 1.5. If you answer "Yes" to question 1.1, you must complete questions 1.2, 1.3, 1.4 and 1.5. Where this question is applicable, Potential Suppliers are required to achieve a Pass for questions 1.2, 1.3, 1.4, 1.5(c) and 1.5(d) as a condition of participation.

Question	Description	Weighting	Type	Criteria
	• Q1.3 - A copy of your procedures for resolving disputed invoices promptly and effectively. • Q1.3 - Details of any payments of interest for late payments you have paid in the past 12 months or which became due during the past 12 months and remain payable (contractually or under late payment legislation) and, if any such payment has been made (or arose), an explanation as to why this occurred and an outline of what remedial steps have been taken to ensure this does not occur again. • Q1.4 - A copy of your standard payment terms used with sub-contractors on public sector contracts subject to the Procurement Act 2023. **Evidence for prompt payment performance (question 1.5):** Prior to contract award, Network Rail may cross-reference the data provided for this question with data published online under the Reporting on Payment Practices and Performance Regulations 2017. Evidence required: A link to your data published online under the Reporting on Payment			

Question	Description	Weighting	Type	Criteria
	Practices and Performance Regulations 2017 if you are required to publish under these regulations. A reporting period referred to in question 1.5 is as set out in the Department for Business and Trade Guidance accessible via the following link: Business payment practices and performance: reporting requirements - GOV.UK			
1.5.2 Payment in Contracts 1.2	Please confirm that you have systems in place to pay those in your supply chain promptly and effectively, i.e. within your agreed contractual terms.	n/a	Pass/Fail	Pass = Where 'Yes' is answered. Fail = Where 'No' is answered.
1.5.3 Payment in Contracts 1.3	Please confirm you have procedures for resolving disputed invoices with those in your supply chain promptly and effectively. Note: This should include all situations where payments are due; not all payments involve an invoice.	n/a	Pass/Fail	Pass = Where 'Yes' is answered. Fail = Where 'No' is answered.
1.5.4 Payment in Contracts 1.4	**Public sector contracts only:** Please confirm that for public sector contracts awarded under the Procurement Act you have systems in place to include (as a minimum) 30-day payment terms in all of your supply	n/a	Pass/Fail	Pass = Where 'Yes' is answered or N/A because the Potential Supplier has not been awarded any contracts under the Procurement Act. Fail = Where 'No' is answered.

Question	Description	Weighting	Type	Criteria
	chain contracts and require that such terms are passed down through your supply chain.			-
1.5.5 Payment in Contracts 1.5(a)	**Public and private contracts:** Please provide the percentage of invoices paid by you to those in your immediate supply chain on all contracts for each of the two previous six-month reporting periods. This should include the percentage of invoices paid within each of the following categories: (i) within 30 days (ii) in 31 to 60 days (iii) in 61 days or more (iv) due but not paid by the last date for payment under agreed contractual terms -	n/a	Information Only	This question does not itself have a separate scoring criteria, but you must provide this data in order for your response to the Conditions of Participation to be compliant. This data will be used to score questions 1.5(c) and 1.5(d).
1.5.6 Payment in Contracts 1.5(b)	Please provide the average number of days taken by you to pay an invoice to those in your immediate supply chain on all contracts for each of the two previous six-month reporting periods. It is acceptable to cross refer to information that has previously been submitted to government or other bodies or is publicly available (provided it covers the required reporting periods), including data published in accordance with the Reporting on	n/a	Information Only	This question does not itself have a separate scoring criteria, but you must provide this data in order for your response to the Conditions of Participation to be compliant. This data will be used to score questions 1.5(d).

Question	Description	Weighting	Type	Criteria
	Payment Practices and Performance Regulations 2017. If you do wish to cross-refer, please provide details and/or insert link(s).			
1.5.7 Payment in Contracts 1.5(c)	If you are unable to demonstrate that all invoices have been paid within the agreed contractual terms, please explain why. Note: if you are required to submit an action plan under question 1.5(d), this action plan must also set out steps to address your payment within agreed terms, to achieve a pass for question 1.5(d).	n/a	Pass/Fail	Pass = Potential Supplier pays all supply chain invoices within the agreed contractual terms. OR Potential Supplier does not pay all supply chain invoices within the agreed contractual terms but has provided an explanation as to why. Fail = Potential Supplier does not pay all supply chain invoices within the agreed contractual terms and has not provided an explanation as to why.
1.5.8 Payment in Contracts 1.5(d)	Potential Suppliers must meet both of the below criteria simultaneously in one of the last two reporting periods (after removing intercompany payments): - Potential Supplier pays 95% or more of its invoices in 60 days (90% plus if a valid action plan has been provided)	n/a	Pass/Fail	Pass = Potential Supplier pays at least 95% of all supply chain invoices in 60 days (90% or more if a valid action plan has been provided) and the Potential Supplier's average payment time is 45 days or fewer. Both metrics are hit concurrently in at least one of the previous two six-month reporting periods.

Question	Description	Weighting	Type	Criteria
	- Potential Supplier has paid all of its invoices in an average of 45 days or fewer If you are unable to demonstrate that at least 95% of invoices payable to your supply chain on all contracts have been paid within 60 days of the receipt of the invoice in at least one of the last two six-month reporting periods, please provide an action plan for improvement which includes (as a minimum) the following: (i) Identification of the primary causes of failure to pay: - 95% of all supply chain invoices within 60 days; and - if relevant under question 1.5(c), all invoices within agreed terms (ii) Actions to address each of these causes. (iii) A mechanism for and commitment to regular reporting on progress to the supplier's audit committee (or equivalent). (iv) Plan signed off by director. (v) Plan published on its website (this can be a shorter summary plan). If you have an existing action plan prepared for a different purpose, it is acceptable to attach this but it should contain the above features.			Note that both metrics may be calculated either with or without intercompany payments included. Fail = Potential Supplier does not meet both criteria (a) and (b) simultaneously in one of the last two reporting periods (after removing intercompany payments): (a) Potential Supplier pays 95% or more of its invoices in 60 days (90% plus if a valid action plan has been provided); and (b) Potential Supplier has paid all of its invoices in an average of 45 days or fewer

Question	Description	Weighting	Type	Criteria
1.5.9 Carbon Reduction Plan	You must provide a Carbon Reduction Plan confirming your commitment to achieving net zero by 2050 in the UK and setting out the environmental management measures that you have in place, and which will be in effect and utilised during the performance of the contract. Please attach here.	n/a	Information Only	
1.5.10 Carbon Reduction 1	Please confirm that your organisation is taking steps to reduce your GHG emissions over time and is publicly committed to achieving net zero by 2050.	n/a	Pass/Fail	A Potential Supplier will pass this question where they have publicly committed to achieving net zero by 2050
1.5.11 Carbon Reduction 2	Please confirm your Net Zero Target Date (e.g. 2050)	n/a	Pass/Fail	A Potential Supplier will pass this question where their target date is equal to, or before 2050
1.5.12 Carbon Reduction 3	Please complete the following Supplier Emissions Declaration: Baseline Year: [Insert Year] Scope 1: [Insert emissions (tCO2e)] Scope 2: [Insert emissions (tCO2e)]	n/a	Information Only	

Question	Description	Weighting	Type	Criteria
	Scope 3: [Insert emissions (tCO2e)] Current/Most Recent Reporting Year: [Insert Year] Scope 1: [Insert emissions (tCO2e)] Scope 2: [Insert emissions (tCO2e)] Scope 3: [Insert emissions (tCO2e)]			
1.5.13 Tackling Modern Slavery in Supply Chains	If you are a 'relevant commercial organisation'* and are subject to the requirements contained within section 54 of the Modern Slavery Act 2015 and associated guidance, please confirm that you have provided a statement, and your statement includes information relating to: a. the organisation's structure, its business and its supply chains b. its policies in relation to slavery and human trafficking c. its due diligence processes in relation to slavery and human trafficking in its business and supply chains d. the parts of its business and supply chains where there is a risk of slavery and	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they have an annual turnover of below £36million and so are not required to provide a response OR - they have provided a statement which includes reference to sections a – f in the question

Question	Description	Weighting	Type	Criteria
	human trafficking taking place, and the steps it has taken to assess and manage that risk e. its effectiveness in ensuring that slavery and human trafficking is not taking place in its business or supply chains, measured against such performance indicators as it considers appropriate f. the training and capacity building about slavery and human trafficking available to its staff If you are not a 'relevant commercial organisation' but have a turnover of more than £36 million, please provide a link to an equivalent statement or document which demonstrates information to a to f above. *'Relevant commercial organisations' are defined as commercial organisations that carry on a business or part of business in the UK, supply goods or services and have an annual turnover of £36 million or more.			

Question	Description	Weighting	Type	Criteria
	Where this question does not apply, please attach a word document with the title "N/A"			
Confirmations				
1.6.1 Confirmations	I confirm that: (a) to the best of my knowledge the answers submitted and information contained in this document are complete, accurate and not misleading; (b) upon request and without delay I will provide the additional information requested of us; (c) I understand that the response to this questionnaire will be used to assess whether our organisation is entitled to participate in, or continue to participate in, this Procurement; and (d) I understand that our organisation may be excluded from the Procurement if requested information has not been provided, if any of this response or any follow up responses are incomplete, inaccurate or misleading, if confidential information has been accessed or if we have unduly influenced your decision-making in this Procurement.	n/a	Pass/Fail	The Potential Supplier will pass this question where they respond “Yes”

Question	Description	Weighting	Type	Criteria
1.6.2 Signature	Signed:	n/a	Information Only	The Potential Supplier must ensure that it signatory is authorised to submit this confirmation on its behalf.
1.6.3 Date	Date:	n/a	Information Only	
1.6.4 Name	Name:	n/a	Information Only	
1.6.5 Role	Role:	n/a	Information Only	
1.6.6 Phone number:	Phone number:	n/a	Information Only	
1.6.7 Email:	Email:	n/a	Information Only	
1.6.8 Postal address:	Postal address:	n/a	Information Only	

Technical Envelope 100% Weighted PSQ

Summary of PSQ Technical Envelope

Section	Section Weighting	Question	Question Weighting	Question Types
Technical Ability	55%	Relevant Experience 1	27.5%	Weighted Assessment Contains weighted Sections and questions which are scored in accordance with this document. The score for each question contributes to an overall technical score.
		Relevant Experience 2	27.5%	
	25%	Safety 1	5.0%	
		Safety 2	15.0%	
		Safety 3	5.0%	
	10%	Optimisation Innovation	10.0%	
Sustainability and Social Value	10%	Sustainability 1	3.34%	
		Social Value	3.33%	
		Sustainability 2	3.33%	
Information Security	Pass / Fail	Information Security	N/A	Pass / Fail
Modern Slavery	Pass / Fail	Modern Slavery 1 - 12	N/A	Pass / Fail

Question	Description	Weighting	Type	Criteria
2.1 Technical Ability 55% **2.1.1 It should be noted that the Questions below for Relevant Experience 1 & Relevant Experience 2, have a minimum pass mark of 2. If a Potential Supplier does not score 2 or higher within either of these questions, they shall be excluded from the procurement process.** **2.1.2 Note - Relevant Experience Questions 1 & 2** Where the Potential Supplier comprises a consortia, or where you have indicated that you are relying on an associated person to demonstrate the technical ability, you should provide relevant example(s) of where the associated person has delivered similar requirements. If this is not possible, then up to three separate examples should be provided between the principal member(s) of the proposed consortium or members of the special purpose vehicle or sub-contractors (three examples are not required from each member)				
2.1.3 Relevant Experience 1	**<u>Warehousing</u>** Using a maximum of three contract examples, please demonstrate your previous experience relevant to the warehousing scope of this Procurement, in any combination from either the public, private sectors; voluntary, charity or social enterprise (VCSE) relevant to our requirement. As a minimum your response should include: (i) How you have managed warehousing for a similar requirement to the scope of this Procurement including, where relevant, details of how you have managed any sub-contractor relationships held and processes to assure sub-contractors safety & performance.	27.5%	Scored	**5 100%** - Overall, the response provides Network Rail with a very high level of confidence because it: • addresses the question to an excellent level; • demonstrates an excellent level of relevant capability, understanding, skills and resources to meet the requirements; and • contains relevant and excellent evidence. **4 80%** - Overall, the response provides Network Rail with a good level of confidence because it: • addresses the question to a good level; • demonstrates a good level of relevant capability, understanding,

Question	Description	Weighting	Type	Criteria
	(ii) How you have delivered stakeholder collaboration including complex interfaces and restrictions and how these have been jointly managed with Stakeholders. (iii) Details of how you have managed Warehouses, with fixed logistics requirements including a summary of geographical coverage relevant to the requirements of this procurement. (iv) How you provided business continuity plans to mitigate against operational service disruption. VCSEs may include samples of grant-funded work. The contract examples must be from the past five years. You must provide a named contact who should be able to provide written evidence to confirm the accuracy of the information provided in the relevant example. Page Limit: 6 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from**			skills and resources to meet the requirements; and • contains relevant and good evidence. **3 60%** - Overall, the response provides Network Rail with an adequate level of confidence because it: • addresses the question to an adequate level; • demonstrates an adequate level of relevant capability, understanding, skills and resources to meet the requirements; and • contains adequate relevant evidence. **2 40%** - Overall, the response provides Network Rail with a low level of confidence because it: • addresses the majority, but not all, of the requirements of the question; and/or • demonstrates a less than adequate level of relevant capability, understanding, skills and resources to meet the requirements; and/or • contains less than adequate evidence. (**Minimum Pass Mark**)

Question	Description	Weighting	Type	Criteria
	this Procurement who score less than a score of 2 for this question.			**1 20%** - Overall, the response provides Network Rail with a very low level of confidence because it: • only addresses a minority of the requirements of the question; and/or • demonstrates a poor level of relevant capability, understanding, skills and resources to meet the requirements; and/or • contains poor relevant evidence **0 0%** - Overall, the response is unacceptable to Network Rail because it: • does not properly address the question; and/or • fails to demonstrate relevant capability, understanding, skills and resources to meet the requirements; and/or • no evidence is provided, or the evidence provided does not give any confidence in the response.
2.1.4 Relevant Experience 2	**Road Haulage** Using a maximum of three contract examples, please demonstrate your previous experience relevant to the	27.5%	Scored	As above (Relevant Experience 1 Scoring Criteria shall be applied)

Question	Description	Weighting	Type	Criteria
	road haulage scope of this Procurement, in any combination from either the public, private sectors; voluntary, charity or social enterprise (VCSE) relevant to our requirement. As a minimum your response should include: (i) How you have managed Road Haulage for a similar requirement to the scope of this Procurement including, where relevant, details of how you have managed any subcontractor relationships held and processes to assure sub-contractors safety & performance. (ii) How you have delivered stakeholder collaboration including complex interfaces and restrictions and how these have been jointly managed with Stakeholders (iii) Details of tracking, route optimisation and use of technology to deliver the contract. (iv) Details of how you have managed sporadic/unplanned order volume with evidence. (v) How you provided business continuity plans to mitigate against operational service disruption.			(**Minimum Pass Mark of a score of 2 applies**)

Question	Description	Weighting	Type	Criteria
	(vi) A summary of geographical coverage relevant to the scope of this Procurement, with details of any specific restrictions including mitigations for restrictions. Network Rail will require from time-to-time overseas logistics with the provision of customs clearance, please provide evidence of how you have managed overseas requirements. VCSEs may include samples of grant-funded work. The contract examples must be from the past five years. You must provide a named contact who should be able to provide written evidence to confirm the accuracy of the information provided in the relevant example. Page Limit: 6 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question.**			
2.2 Health & Safety: 25%				

Question	Description	Weighting	Type	Criteria
2.2.1 Safety 1	**<u>Fatigue Management</u>** Please provide your company's Fatigue Management policy and explain how this has been overlayed into working practice. Your response should include, but is not limited to: (i) how you manage, monitor and address fatigue within your workforce, including sub-contractors where applicable. (ii) weekly and daily exceedance limits, tools and procedures used, and raising awareness. Page Limit: 3 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments but excludes the policy.	5%	Scored	**5 100%** - Overall, the response provides Network Rail with a very high level of confidence because it: • addresses the question to an excellent level; • demonstrates an excellent level of relevant capability, understanding, skills and resources to meet the requirements; and • contains relevant and excellent evidence. **4 80%** - Overall, the response provides Network Rail with a good level of confidence because it: • addresses the question to a good level; • demonstrates a good level of relevant capability, understanding, skills and resources to meet the requirements; and • contains relevant and good evidence. **3 60%** - Overall, the response provides Network Rail with an adequate level of confidence because it: • addresses the question to an adequate level; • demonstrates an adequate level of relevant capability,

Question	Description	Weighting	Type	Criteria
				understanding, skills and resources to meet the requirements; and • contains adequate relevant evidence. **2 40%** - Overall, the response provides Network Rail with a low level of confidence because it: • addresses the majority, but not all, of the requirements of the question; and/or • demonstrates a less than adequate level of relevant capability, understanding, skills and resources to meet the requirements; and/or • contains less than adequate evidence. **1 20%** - Overall, the response provides Network Rail with a very low level of confidence because it: • only addresses a minority of the requirements of the question; and/or • demonstrates a poor level of relevant capability, understanding, skills and resources to meet the requirements; and/or • contains poor relevant evidence

Question	Description	Weighting	Type	Criteria
				0 0% - Overall, the response is unacceptable to Network Rail because it: • does not properly address the question; and/or • fails to demonstrate relevant capability, understanding, skills and resources to meet the requirements; and/or • no evidence is provided, or the evidence provided does not give any confidence in the response.
2.2.2 Safety 2	Please provide: (i) examples of your safety performance assessed against at least two of the following metrics: CMK (Collisions per Million Kilometres), LTIs (Lost Time Injury), PIs (Personal Injury), FWI (Fatality Weighted Index) & safety conversations and close calls in a similar contract(s). (ii) details of your health and safety management system or equivalent including how duties in accordance with the Management of Health & Safety at Work Regulations 1999 have been suitably discharged. Please use evidence to support including Health and Safety performance reporting including CMK, LTIs, PIs and FWI.	15%	Scored	As above (Safety 1 Scoring Criteria shall be applied)

Question	Description	Weighting	Type	Criteria
	(iii) evidence of how safety assurance has been managed and flowed down to your supply chain (including sub-contractors, if applicable) and your customers. The examples used must be from the past two years. Page Limit: 4 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments.			
2.2.3 Safety 3	Please provide: (i) An example of when and how you have organised, performed and documented risk assessments, including site access restrictions. If you cannot provide an example as to how this has been managed within a railway environment, please provide an example from another industry with evidence as to why it is relevant to the scope of this Procurement. (ii) An example of completing and recording a risk assessment, and how this has made a positive impact on safety within your organisation. The examples used must be from the past five years.	5%	Scored	As above (Safety 1 Scoring Criteria shall be applied)

Question	Description	Weighting	Type	Criteria
	Page Limit: 3 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments.			
2.3 Optimisation & Innovation: 10%				
2.3.1 Optimisation Innovation	Please provide an example, demonstrating where you have adopted innovation, with relevance to the scope of this Procurement. Your case study should include: (i) details of the initiatives and a clear demonstration as to how effective they have been. (ii) how you worked collaboratively with the customer to implement / adopt the innovation. The example must be from the past 5 years. Page Limit: 2 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments.	10%	Scored	As above (Safety 1 Scoring Criteria shall be applied)
2.4 Sustainability & Social Value: 10%				
2.4.1 Sustainability 1	Please confirm whether your organisation holds a valid and current ISO 14001 Environmental Management System (EMS) certification that covers the full scope of services required under this contract. The response should demonstrate how this is being applied within the organisation effectively with relevance to this	3.34%	Scored	**5 100%** Exceptional. Demonstration by the Potential Supplier that they are certified for environmental management (or have an equivalent environmental

Question	Description	Weighting	Type	Criteria
	contract. If certified, please attach a copy of your ISO 14001 certificate as part of your response. If your organisation is not certified, please confirm whether it operates in alignment with the principles of ISO 14001 or an equivalent environmental management system. In this case, please describe how your EMS reflects key ISO 14001 principles, such as: - Identification and management of environmental aspects and impacts - Legal and regulatory compliance - Objectives and targets for environmental performance - Monitoring, measurement, and continuous improvement - Leadership commitment and employee engagement and demonstrate how this is being applied within the organisation effectively with relevance to this contract Page Limit: 4 sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments but excludes any ISO 14001 certificate (if your organisation is certified) or any policy document setting out your equivalent environmental management system.			management system aligned to key ISO 14001 principles) and the Potential Supplier demonstrates to an excellent level how this is integrated into their management systems. **4 80%** Above Acceptable. Demonstration by the Potential Supplier that are certified for environmental management (or have an equivalent environmental management system aligned to key ISO 14001 principles) and the Potential Supplier demonstrates to a good level how this is integrated into their management systems. **3 60%** Acceptable. Demonstration by the Potential Supplier that they that they are certified for environmental management (or have an equivalent environmental management system aligned to key ISO 14001 principles) and the Potential Supplier demonstrates to an adequate level how this is integrated into their management systems.

Question	Description	Weighting	Type	Criteria
				2 40% Minor reservations One or more minor reservations in relation to the Potential Supplier as to whether they are certified for environmental management (or have an equivalent environmental management system aligned to key ISO 14001 principles) and/or how this is integrated into their management systems. **1 20%** Considerable reservations One or more considerable reservations in relation to the Potential Supplier as to whether they are certified for environmental management (or have an equivalent environmental management system aligned to key ISO 14001 principles) and/or how this is integrated into their management systems. **0 0%** Unacceptable Insufficient or no information provided by the Potential Supplier to demonstrate whether they are certified for environmental management (or have an equivalent

Question	Description	Weighting	Type	Criteria
				environmental management system aligned to key ISO 14001 principles) and/or how this is integrated into their management systems
2.4.2 Social Value	Please provide details of your organisation's approach to social value that addresses business risks and opportunities associated with responsible business practices and positive social performance. As part of your response, please provide examples of social responsibility initiatives your organisation has implemented within the last two years, particularly those that demonstrate community impact or workforce engagement. Please support your response with extracts of the relevant parts of your social value and/or other relevant policies to which these examples relate. Page Limit: 4 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments.	3.33%	Scored	**5 100%** - Overall, the response provides Network Rail with a very high level of confidence because it: • addresses the question to an excellent level; • demonstrates an excellent level of relevant capability, understanding, skills and resources to meet the requirements; and • contains relevant and excellent evidence. **4 80%** - Overall, the response provides Network Rail with a good level of confidence because it: • addresses the question to a good level; • demonstrates a good level of relevant capability, understanding, skills and resources to meet the requirements; and • contains relevant and good evidence.

Question	Description	Weighting	Type	Criteria
				3 60% - Overall, the response provides Network Rail with an adequate level of confidence because it: • addresses the question to an adequate level; • demonstrates an adequate level of relevant capability, understanding, skills and resources to meet the requirements; and • contains adequate relevant evidence. **2 40%** - Overall, the response provides Network Rail with a low level of confidence because it: • addresses the majority, but not all, of the requirements of the question; and/or • demonstrates a less than adequate level of relevant capability, understanding, skills and resources to meet the requirements; and/or • contains less than adequate evidence. **1 20%** - Overall, the response provides Network Rail with a very low level of confidence because it: • only addresses a minority of the requirements of the question; and/or

Question	Description	Weighting	Type	Criteria
				• demonstrates a poor level of relevant capability, understanding, skills and resources to meet the requirements; and/or • contains poor relevant evidence **0 0%** - Overall, the response is unacceptable to Network Rail because it: • does not properly address the question; and/or • fails to demonstrate relevant capability, understanding, skills and resources to meet the requirements; and/or • no evidence is provided, or the evidence provided does not give any confidence in the response.
2.4.3 Sustainability 2	Network Rail is committed to preserving valuable raw materials and is embedding a circular economy approach to ensure that materials are retained and re-used in a high value state, for as long as possible. Please provide: (i) evidence that you have a waste hierarchy policy in place that minimises the use of	3.33%	Scored	**As above (Social Value Question Scoring shall be utilised)**

Question	Description	Weighting	Type	Criteria
	new raw materials, to reduce waste and to increase recycling and/or re-use of key raw materials. (ii) examples of where Circular Economy principles have been applied within your organisation when procuring goods or services with relevance to the scope of this Procurement. Page Limit: 2 Sides of A4, any text in excess of this page limit shall be disregarded, this includes links and attachments.			
2.5 Information Security				
2.5.1 Information Security 1	Which information security accreditations has your organisation achieved or is expecting to achieve by the date of contract award?	n/a	Pass/Fail	A Potential Supplier will "Pass" if they - have achieved an ISO 27001 certification (or equivalent) relevant to the scope of this Procurement, and the certification can be validated or - is expecting to achieve ISO 27001 certification (or equivalent) relevant to the scope of this Procurement by the date of contract award (the certification will need to be validated prior to contract award).

Question	Description	Weighting	Type	Criteria
2.5.2 Information Security 2	Please upload a copy of your ISO 27001 certificate (or equivalent) or if you are in the process of obtaining this certification (or equivalent), please explain how your organisation expects to achieve this standard by the date of contract award.	n/a	Information only	This question is to validate the question – Information Security
2.6 Modern Slavery				
2.6.1 Modern Slavery 1	Your organisation ensures all workers are in receipt of the minimum wage.	n/a	Pass/Fail	A Potential Supplier will pass this question where they select wholly agree
2.6.2 Modern Slavery 2	Your organisation carries out robust immigration checks (right to work) on all workers.	n/a	Pass/Fail	A Potential Supplier will pass this question where they select wholly agree
2.6.3 Modern Slavery 3	Your organisation has published a policy that addresses modern slavery and has been communicated to all employees.	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.4 Modern Slavery 4	Your organisation has a programme in place to reduce the risk of modern slavery taking place in any part of your business or supply chains.	n/a	Pass/Fail	A Potential Supplier will pass this question where:

Question	Description	Weighting	Type	Criteria
				- they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.5 Modern Slavery 5	Your organisation provides training to employees on modern slavery.	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.6 Modern Slavery 6	Your organisation conducts due-diligence on all prospective suppliers, contractors or business partners, before contracting with them, which includes checks related to modern slavery (for example, checks on use of forced or child labour, and their approach to modern slavery).	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they select wholly agree or; - they select partially agree and provide an explanation NR

Question	Description	Weighting	Type	Criteria
				deems as satisfactory as to why
2.6.7 Modern Slavery 7	Your organisation has completed a risk assessment or risk mapping exercise of your business and supply chains to highlight areas where there are risks related to modern slavery.	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.8 Modern Slavery 8	Where completion of a risk assessment or risk mapping exercise (as referred to in question 7) has identified high-risk areas either within your business, or within your supply chains, your organisation has a documented action plan in place to manage risks related to modern slavery.	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.9 Modern Slavery 9	Your organisation has a process in place to check whether any of your suppliers, contractors or sub-	n/a	Pass/Fail	A Potential Supplier will pass this question where:

Question	Description	Weighting	Type	Criteria
	contractors have been convicted of an offence under the Modern Slavery Act 2015.			- they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.10 Modern Slavery 10	Your organisation conducts audits/undertakes site inspections of your suppliers and their premises, which specifically look for signs of modern slavery/forced, or child labour.	n/a	Pass/Fail	A Potential Supplier will pass this question where: - they select wholly agree or; - they select partially agree and provide an explanation NR deems as satisfactory as to why
2.6.11 Modern Slavery 11	Your organisation uses supplier contracts which contain an obligation on suppliers to comply with the Modern Slavery Act 2015.	n/a	Pass/Fail	A Potential Supplier will pass this question where they select wholly agree
2.6.12 Modern Slavery 12	Where you have selected 'Partially-Agree' as your answer to any question between Modern Slavery Q1 and 11, please upload an attachment providing an explanation.	n/a	Information Only	

Appendix C –Tender Criteria

Summary of Tender Criteria

Envelope	Envelope Weight	Section	Section Weighting	Question	Question Weighting	Question Types
Qualification	N/A	Qualification	Pass / Fail	Qualification	Pass / Fail	Contains response requirements including Form of Tender which must be complete and submitted in order for the tender to be compliant.
Technical	70%	Methodology	35%	Method Statement 1	15%	Weighted Assessment Contains weighted Sections and questions which are scored in accordance with this document. The score for each question contributes to an overall technical score.
				Method Statement 2	15%	
				Method Statement 3	5%	
		Safety	10%	Safety 1	5%	
				Safety 2	5%	
		Mobilisation	5%	Mobilisation of Contract	5%	
		Resourcing	10%	Resourcing of Contract	10%	
		Sustainability and Social Value	10%	Circular Economy	2.5%	
				Carbon Reduction	2.5%	
				Modern Slavery - General	2.5%	
				Modern Slavery - Recruitment	2.5%	
				Modern Slavery - Assessment Tool	N/A	For info only.
		Sub-contractors & Suppliers	N/A	Sub-contractors & Suppliers	N/A	For info only.
Commercial	30%	Commercial	30%	Road Haulage & Warehousing Combined Pricing Model	25%	Weighted Assessment Contains weighted questions which are scored in accordance with this document.
				Road Haulage Gain & Pain Share Proposal	5%	

				Road Haulage Supporting Commercial Question	N/A	For info only. These questions must be completed in order for the tender to be compliant.
				Warehousing Supporting Commercial Question	N/A	
				Option: Fleet Spares Storage Pricing Document	N/A	For info only.

Qualification Envelope

Question	Description	Weighting	Type	Criteria
1.1.1 Confirmation	Please confirm you have downloaded the relevant documents to complete the tender	n/a	Information Only	n/a
1.2.1 Form of Tender	Please download, complete and attach the Form of Tender	n/a	Information Only	n/a
1.3.1 AI Usage	Have you used AI or machine learning tools, including large language models, to assist in any part of your tender submission? This may include using these tools to support the drafting of responses to the tender questions.	n/a	Information Only	n/a
1.3.2AI Usage Declaration	Where AI tools have been used to support the generation of any part of your tender submission, please confirm that they have been checked and verified for accuracy.	n/a	Information Only	n/a
1.4.1 Resource Declaration	The Potential Supplier confirms, should its tender be accepted: 1. that it has the resources available with the necessary skills, competencies, knowledge and experience to execute the Services within the time period specified in the Instructions to Potential Suppliers and associated tender	n/a	Information Only	n/a

Question	Description	Weighting	Type	Criteria
	documents and provision of such resources will not prejudice the timely performance of any other contract existing at the date proposed for award of this Contract; 2. the committed resources assigned to this Contract at acceptance of tender will remain assigned to this Contract until released by the Employer's Representative; 3. it will assign the "key personnel" defined in, Key Personnel & CV's, as approved by the Employer's Representative, at award of contract; 4. that in the event of "key personnel" becoming unavailable (due to ill health/resignation of employment or the like) the Potential Supplier agrees to provide a replacement of equal standard and status within 48 hours of the original "key personnel" becoming ill or giving notice of resignation.			
1.5.1 Certificate of Non-Collusion and Non-Canvassing	Please download, complete and attach the Certificate of non-collusion and non-canvassing	n/a	Information Only	n/a

Technical Envelope (70% Weighting)

It should be noted that Questions 2.1.1, 2.1.2, 2.1.3, 2.2.1, 2.2.2, 2.3.1 and 2.4.1 have a minimum pass mark of 2. If a Potential Supplier does not score 2 or higher within any of these questions, they shall be excluded from the Procurement process.

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
2.1.1 Method Statement 1	Please provide a method statement that details how you propose to deliver all service requirements set out within NR1 Contract - Schedule 1.1 Road Haulage & associated schedules. Your response should include the following as a minimum: (i) Details of the transport solution by source, (i.e. dedicated fleet, in-house or sub-contracted and how you will monitor & maintain service delivery and also delivery efficiency / flexibility. If sub-contractors are to be utilised, the method statement should also describe how you will manage the process for implementing and managing sub-contract assurance end to end. (ii) Any specific areas of efficiency that could be applied to the Road Haulage Services, including but not limited to vehicle optimisation and consolidation and how you would implement them. Page Limit: 8 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.	15%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of the question will be delivered to an excellent standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence. **4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be achieved; and · contains relevant and good evidence. **3 60%** Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
				relevant requirements are very likely to be achieved; and · contains adequate relevant evidence. **2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or · contains less than adequate evidence. · **(Minimum Pass Mark)** **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: · only addresses a minority of the requirements of the question; and/or · demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. **(Results in Exclusion)**

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
				0 0% Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the relevant requirements and/or demonstrate how the relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response. **(Results in Exclusion)**
2.1.2 Method Statement 2	Please provide a method statement that details how you propose to deliver all service requirements set out within NR1 Contract Schedule 1.2 Warehousing & associated schedules Your response should include the following as a minimum: (i) how you propose to operate the specified RDC locations listed within the specification including the routine logistics elements of the Warehousing Requirements set out within Schedule 1.2 Warehousing Services specification. (ii) details of the transport solution by source, (i.e. dedicated fleet, in-house or subcontracted), vehicle type and quantity, that will be utilised and located at each RDC to complete inter-site and MSP deliveries. Your response should also include how you will monitor & maintain service delivery and also deliver efficiency / flexibility. If sub-contractors are to be utilised, the method statement should also describe how you will manage the process for	15%	Scored as per Criteria	**As above (Method Statement 1 Scoring)** (**Minimum Pass Mark of a score of 2 applies**)

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	implementing and managing sub-contract assurance end to end. (iii) any specific areas of efficiency that could be applied to the Warehousing Services, including but not limited to vehicle optimisation and consolidation and how you would implement them. Page Limit: 8 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.			
2.1.3 Method Statement 3	Please provide a method statement that details how you propose to deliver a central support function, to support both the Warehousing requirements and Road Haulage requirements as set out in Schedule 1.0 (Road Haulage Services and Warehousing Services Combined Specification). Your response should include as a minimum: (i) how you will operate the Transport Planning Team (ii) how you will implement and operate the combined system requirements (iii) how you will operate the Customer Service Helpdesk	5%	Scored as per Criteria	**As above (Method Statement 1 Scoring)** (**Minimum Pass Mark of a score of 2 applies**)

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	(iv) any specific areas of efficiency that could be applied in the delivery of the Combined Services, for example shared resource across the Contract. Page Limit: 5 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.			
2.2.1 Safety 1	Network Rail is committed to reducing health and safety risks for all employees, stakeholders & contracted staff. In relation to the provision of the services for this contract, please detail your approach to managing the Health and Safety of your workforce, subcontracted resources and any other Stakeholders. Please include any risk assessment and mitigation processes you propose as part of the contract, referencing any relevant policies, procedures and systems you propose to have under the contract. Your Response should include the following as a minimum: (i) Your Safe Systems of Works (SSOW) and permits to work process. (ii) Your process for staff Health & Safety inductions & training. (iii) What competence and vehicle / plant licence management processes you will have in place.	5%	Scored as per Criteria	**As above (Method Statement 1 Scoring)** (**Minimum Pass Mark of a score of 2 applies**)

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	(iv) How you will manage occupational health and wellbeing for staff including health surveillance & Drugs and Alcohol monitoring. Page Limit: 5 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.			
2.2.2 Safety 2	Please demonstrate how your organisation will implement a process that will effectively communicate and implement all Network Rail Standards, Railway Group Standards, and Health & Safety legislation applicable to the scope of this Procurement. Your response should include as a minimum: (i) The management approach and process proposed within your organisation and (if applicable) with sub-contractors to maintain compliance throughout the contract duration. (ii) The proposed process for monitoring and responding to updates or changes in relevant policies and standards.	5%	Scored as per Criteria	**As above (Method Statement 1 Scoring)** (**Minimum Pass Mark of a score of 2 applies**)

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	(iii) The methods to be used to engage and inform staff to ensure ongoing awareness of applicable standards and policies. Note: The following link details how to register for Network Rail's standards portal and provides information on standards updates - Network Rail Standards & Controls Website – External User Access Page Limit: 3 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.			
2.3.1 Mobilisation of Contract	Please detail how you will mobilise this contract effectively to meet the requirements detailed within the specification. Network Rail has a requirement for mobilisation to be conducted within a maximum timeframe of 30 weeks from contract award in line with the Transition Timeline activities included within the document attached to this question on Bravo. Your response should include the following as a minimum: a. A mobilisation plan which maps out the key stages of the process	5%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of the question will be delivered to an excellent standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements, and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence. **4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	b. Details of how responsibilities in relation to the mobilisation of the contract shall be discharged to roles specified in your organisation. c. Full details of activities which will be completed at each key stage d. A Gantt chart stating the timescales and order of each key stage / key activity e. How you propose to manage potential slippage to the timescales / key stages / key activities Your response must align to the transition timeline milestones, and proposed delivery of this contract as detailed within your method statements as submitted for questions 2.1.1, 2.1.2 and 2.1.3 Your response will be captured as a contractual commitment within the NR1 Contract under Schedule 12 'Implementation Plan'. Page Limit: 5 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.			delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be achieved; and · contains relevant and good evidence. **3 60%** Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the relevant requirements are very likely to be achieved; and · contains adequate relevant evidence. **2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or ·

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
				contains less than adequate evidence. · **(Minimum Pass Mark)** **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: · only addresses a minority of the requirements of the question; and/or · demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. · **(Results in Exclusion)** **0 0%** Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the relevant requirements and/or demonstrate how the relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response. **(Results in Exclusion)**
2.4.1 Resourcing of Contract	Please provide your committed resource plans explaining how you will ensure that competent, quality, and sufficient quantity of resources are available to deliver the specification requirements from the first day of the contract for the duration of the contract.	10%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of the question will be delivered to an excellent

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	Your response should include the following as a minimum: a. An organogram outlining the proposed management structure including roles and their proposed % of their time dedicated to the contract. Detail any relevant experience and qualifications of the personnel which will support the successful delivery of the contract. b. Separate organogram/s which includes details of your proposed staffing model for each RDC location, the combined services teams and any other function which forms part of the proposed solution including their location by service line and which is appropriate to deliver the specification requirements. c. How you will ensure a sufficiently sized diverse resource pool across all regional and central areas of Network Rail d. How you will monitor and manage performance including any sub-contracted labour. Your response to the above must align to the proposed delivery of this contract as detailed in your method statements as submitted for questions 2.1.1, 2.1.2, and 2.1.3. Please note that the successful supplier will have the option to base staff at Network Rail's Milton Keynes Office.			standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements, and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence. **4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be achieved; and · contains relevant and good evidence. **3 60%** Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the relevant requirements are very likely to be achieved; and · contains adequate relevant evidence.

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
	Page Limit: 3 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments except the Organograms which are excluded from the page limit. **A minimum pass mark of 2 is required for this question, Network Rail shall exclude suppliers from this Procurement who score less than a score of 2 for this question**.			**2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or · contains less than adequate evidence. · **(Minimum Pass Mark)** **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: · only addresses a minority of the requirements of the question; and/or · demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. · **(Results in Exclusion)** **0 0%** Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the relevant requirements and/or demonstrate how the

Question	Description	Weighting	Type	Criteria (Applicable to all Technical Questions)
				relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response. **(Results in Exclusion)**

Sustainability and Social Value		10%		
2.5.1 Circular Economy	To achieve our ambition of reducing waste and creating a more circular economy, we are focused on keeping materials and resources in circulation and waste to an absolute minimum. To do this we must work with our supply chain partners to select sustainable materials, reduce consumption at source and identify opportunities for the reuse of excess plant and materials. Please explain how throughout the contract you will contribute to creating a circular economy where sustainable materials are used, waste is minimised, and materials are reused within your sphere of control and influence. Your answer should also: (i) consider opportunities for reuse within Network Rail and the environmental impact of new materials. (ii) refer to the Network Rail Greener Railway Strategy and include measurable targets that you will meet on this contract. Your response will be captured as a contractual commitment within the NR1 Contract under Schedule 6 'Contract Requirements HSEA Conditions'.	2.5%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of the question will be delivered to an excellent standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements, and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence. **4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be

	Page Limit: 4 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments.			achieved; and · contains relevant and good evidence. **3 60%** Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the relevant requirements are very likely to be achieved; and · contains adequate relevant evidence. **2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or · contains less than adequate evidence. · **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: ·

				only addresses a minority of the requirements of the question; and/or · demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. · **0 0%** Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the relevant requirements and/or demonstrate how the relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response.
2.5.2 Carbon Reduction	Network Rail is looking to its supply chain to work with us in our commitment to reduce carbon emissions and reduce the environmental impact of our goods and services, considering whole life cycle from service usage and end of life disposal. In relation to delivery of this contract, please describe: (i) your approach to the following themes and how you will contribute to Network Rail's carbon and environmental impact commitments. This should include, but is not limited to: a. Resource use in operational processes	2.5%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of the question will be delivered to an excellent standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements, and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence.

	b. Waste generated from operational processes c. Fuel type and consumption and vehicle usage for delivery of Network Rail's Warehousing Services requirement d. Fuel type and consumption and vehicle usage for delivery of Network Rail's Road Haulage Requirement e. Innovation, research and development (ii) how your processes/ proposed processes will contribute to at least one of the above themes and support your answer with evidence of how you will measure, quantify and report the resultant carbon and environmental impact reductions achieved under this contract. Your response will be captured as a contractual commitment within the NR1 Contract under Schedule 6 'Contract Requirements HSEA Conditions'. Page Limit: 4 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments.			**4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be achieved; and · contains relevant and good evidence. **3 60%** Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the relevant requirements are very likely to be achieved; and · contains adequate relevant evidence. **2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate

				understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or · contains less than adequate evidence. · **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: · only addresses a minority of the requirements of the question; and/or · demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. · **0 0%** Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the relevant requirements and/or demonstrate how the relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response.
2.5.3 Modern Slavery - General	Please explain the steps that your organisation will take, or the processes you already have in place, to mitigate the risk of Modern Slavery occurring within your supply chain during the	2.5%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of

	life of this contract. Potential Supplier's responses should consider, but not be limited to, the following: (i) Risk assessment and due diligence procedures, including the use of auditing; (ii) Communication with suppliers and your supply chain; (iii) Policies / contractual requirements with your supply chain; and (iv) Supply chain training Page Limit: 2 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments.			the question will be delivered to an excellent standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements, and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence. **4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be achieved; and · contains relevant and good evidence. **3 60%** Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the relevant

				requirements are very likely to be achieved; and · contains adequate relevant evidence. **2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or · contains less than adequate evidence. · **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: · only addresses a minority of the requirements of the question; and/or · demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. · **0 0%** Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the

				relevant requirements and/or demonstrate how the relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response.
2.5.4 Modern Slavery - Recruitment	Please explain how you will manage the recruitment of staff during the life of this contract, including checks that will be undertaken to ensure any employees you recruit are not victims of Modern Slavery, and the frequency of these checks. Potential Supplier's responses should consider, but not be limited to, the following: (i) Your organisation's recruitment process; (ii) Policies / procedures in place regarding - for example, payment of wages, withholding of documentation and recruitment fees; and (iii) Where recruitment activity is undertaken by a third party, due diligence procedures that are undertaken, including auditing and other contractual requirements. Page Limit: 2 Sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, this includes links and attachments.	2.5%	Scored as per Criteria	**5 100%** Overall, the response provides Network Rail with a very high level of confidence that the relevant requirements of the question will be delivered to an excellent standard because it: · addresses the question to an excellent level; · demonstrates excellent understanding of the relevant requirements, and demonstrates convincingly how the relevant requirements will be achieved; and · contains relevant and excellent evidence. **4 80%** Overall, the response provides Network Rail with a good level of confidence that the relevant requirements of the question will be delivered to a good standard because it: · addresses the question to a good level; · demonstrates a good understanding of the relevant requirements and demonstrates a high degree of certainty how the relevant requirements will be achieved; and · contains relevant and good evidence.

				3 60% Overall, the response provides Network Rail with an adequate level of confidence that the relevant requirement of the question will be delivered to an adequate standard because it: · addresses the question to an adequate level; · demonstrates an adequate understanding of the relevant requirements and adequately demonstrates how the relevant requirements are very likely to be achieved; and · contains adequate relevant evidence. **2 40%** Overall, the response provides Network Rail with a low level of confidence that the relevant requirements of the question will be delivered because it: · addresses the majority, but not all, of the requirements of the question; and/or · demonstrates a less than adequate understanding of the relevant requirements and/or a less than adequate demonstration of how the relevant requirements will be achieved; and/or · contains less than adequate evidence. · **1 20%** Overall, the response provides Network Rail with a very low level of confidence that the relevant requirements of the question will be delivered because it: · only addresses a minority of the requirements of the question; and/or ·

				demonstrates a poor understanding of the relevant requirements and/or a poor demonstration of how the relevant requirements will be achieved; and/or · contains poor relevant evidence. · **0 0%** Overall, the response is unacceptable to Network Rail because it: · does not properly address the question; and/or · fails to demonstrate an understanding of the relevant requirements and/or demonstrate how the relevant requirements will be achieved; and/or · no evidence is provided, or the evidence provided does not give any confidence in the response.
2.5.5 Modern Slavery – Assessment Tool	Please complete the Modern Slavery Assessment Tool (MSAT) via this link https://supplierregistration.cabinetoffice.gov.uk/msat, and upload your results in response to this question.	n/a	Information Only	Information Only
Sub-Contractors & Suppliers				
2.6.1 Sub-Contractors & Suppliers	Please provide an up to date list of sub-contractors identifying any Associated Persons, any Significant Sub-Contractors and any other intended sub-contractors who will perform work and or services on the Contract including any suppliers who will furnish major components, materials and equipment. Potential Suppliers are referred to Potential Supplier Eligibility (paragraphs 37-39 of Appendix A of the Instructions to Potential Suppliers) and are reminded that Network Rail must be notified immediately in writing via Bravo promptly of any		Information Only	Information only. Reponses to this question are required to enable Network Rail to undertake its due diligence checks as set out in the Due Diligence section of this document, including checks to ensure that the successful supplier (and all relevant entities forming part of the successful supplier's bid team) continues to meet the requirements of the PSQ stage.

	changes in the information that the Potential Supplier has provided in any response to this Procurement to date. Any new sub-contractors not identified at the PSQ stage must be highlighted and information provided to respond to Questions 1.3.8 and 1.3.9/1.3.10 of Appendix B of the PSQ as applicable.			

Commercial Envelope (30% Weighting)

3.1: Combined Pricing Document

Question No		Question Weighting	Requirement	Evaluation Method
3.1.1 Road Haulage & Warehousing Combined Pricing Model		25%	Please download, complete and re-attach the Pricing Document.	Potential Supplier's final tendered price (taken from cells B-F47) to be evaluated according to a proportional versus best assessment 100%). The lowest price shall receive the full 25% and the remaining prices shall be scored proportionately to

				the lowest price using the following formula: (Lowest Price / Potential Supplier's Price) x 0.25
3.1.2 Road Haulage Gain & Pain Share Proposal		5%	In accordance with paragraph 1.6 of Schedule 2.1 of the NR1 Contract, Potential Supplier's must provide their proposal for how any cost savings ("gain") or cost overruns ("pain") in relation to the Potential Supplier's performance against their target rate matrix will be shared with Network Rail. Please download, complete and re-attach the Gain & Pain Share Proposal Document.	Potential Supplier's Gain & Pain Share Proposal score (taken from cell F-G26) to be evaluated according to a proportional versus best assessment. The highest score shall receive the full 5% and the remaining scores shall be scored proportionately to the highest score using the following formula: (Highest Score / Potential Supplier's Score) x 0.05
3.1.3 Road Haulage Supporting Commercial Question		N/A	Potential Suppliers must provide a narrative to support its completed pricing schedule to evidence how the solution has been calculated for the full modelled volume and how it has impacted their target rate matrix. This should include a blended market rate for sub-contractors and, where applicable, rates for supplier owned vehicles	This question isn't scored. This response must align with the Potential Supplier's method statement in question 2.1.1.

			and the anticipated rates achieved by a dedicated fleet. This should also align to the method statement provided in the technical submission. <u>Only Applicable to Dedicated Fleet:</u> If a Potential Supplier proposes to implement a dedicated fleet in addition to sub-contracting, the Potential Supplier shall also provide open book pricing for the dedicated fleet using the attached document. Where a dedicated fleet is proposed, the cost of operating the fleet will be split across the work undertaken during each railway period, broken down into a cost for each journey using the appropriate vehicle cost stack. The journey cost, minus the surcharges, will be measured against the target price matrix (by vehicle type and mileage) and will be subject to the pain/gainshare mechanism (subject to exclusions) detailed in Schedule 2.1 of the NR1 Contract. Potential Suppliers should clearly highlight how the rates achieved by a dedicated fleet impact the modelled volume and total tendered Road Haulage price with evidence and where this applies. Page Limit: 4 sides of A4, Size 10 Arial Font, any text in excess of this page limit shall be disregarded, plus a completed copy of the attached document where a dedicated fleet is proposed. Network Rail does not require that Potential Suppliers invest in a dedicated fleet.	

3.1.4 Warehousing Services Supporting Commercial Question		N/A	Potential Suppliers must provide a narrative to support its completed pricing schedule covering the requirements for one or more of A, B and/or C below, as relevant to its proposed delivery as set out in your method statement as submitted for question 2.1.2. A: If the Potential Supplier's proposal is to provide a fixed fleet per RDC to meet an element / all of MSP / Milk runs as per the specification & Data Pack and Data Tabs: • Please demonstrate how you've reached your annual cost for elements related to a Fixed Fleet detailing the anticipated number and length of journeys to be undertaken aligned to the volume data provided. • Please also complete the attached excel to provide a breakdown of your total Annual fixed fleet costs. B: If the Potential Supplier's proposal is to sub-contract an element / all of the MSP / Milk runs as per the specification & the Data Pack and Data Tabs: • Please demonstrate how you've reached your annual cost for elements related to sub-contracting detailing the vehicle types, surcharges incurred and the anticipated number and length of journeys to be undertaken aligned to the volume data provided. Please indicate the rates associated with these journeys. C: If the Potential Supplier's proposal is to utilise an owner operated fleet to fulfil an element / all of the MSP / Milk runs as per the specification & the Data Pack and Data Tabs: • Please demonstrate how you've reached your annual cost for elements related to utilising Supplier Owned Fleet detailing	This question isn't scored. This response must align with the Potential Supplier's Method Statement.

			the vehicle types, surcharges incurred and the anticipated number and length of journeys to be undertaken aligned to the volume data provided. Please indicate the rates associated with these journeys. Page Limit: 2 Sides of A4, Size 10 Arial Font per option used, any text in excess of this page limit will be disregarded, plus a copy of the attached document where a fixed fleet is proposed.	
3.1.5 Option: Fleet Spares Storage Pricing Document		N/A	In accordance with paragraph 2.3 (Ad Hoc Storage Requirements) of Schedule 1.2 of the NR1 Contract, Network Rail has a potential requirement for the storage of Fleet Spares materials. Please download, complete and re-attach the Pricing Document.	This Question isn't scored. Network Rail may or may not choose to include this requirement in the contract.

Scoring Example for Section 3.1.1 Road Haulage & Warehousing Combined Pricing Model

A model price shall be provided as per the instructions within the pricing sheets. Potential Suppliers must fully populate the pricing model. As set out in this document, tender responses which are not complete and/or which are non-compliant may be rejected and Network Rail shall not be obliged to continue its evaluation of the tender responses of that Potential Supplier.

Scoring for the pricing section shall be calculated as follows:

Example Question 3.1.1 Road Haulage & Warehousing Combined Pricing Model (Cell B-F 47 is the evaluation price within "4.0 Final Tendered Price" Tab):

	Final Tendered Price
Potential Supplier No 1	£50,040
Potential Supplier No 2	£62,000
Potential Supplier No 3	£55,540

Potential Supplier No 1 has offered the lowest price, so this Potential Supplier will receive 25% out of 25% available.

Score for Potential Supplier No 2 = Score [Potential Supplier No 1] / Score [Potential Supplier No 2] x 0.25
= 50,040 / 62,000 x 0.25
= 20.18% out of 25% available

Score for Potential Supplier No 3 = Score [Potential Supplier No 1] / Score [Potential Supplier No 3] x 0.25
= 50,040 / 55,540 x 0.25
= 22.52% out of 25% available

Scoring Example for Section 3.1.2 Road Haulage Gain & Pain Share Proposal

Potential Suppliers must fully populate the gain & pain share proposal document. As set out in this document, tender responses which are not complete and/or which are non-compliant may be rejected and Network Rail shall not be obliged to continue its evaluation of the tender responses of that Potential Supplier.

Scoring for the Gain & Pain Share proposal shall be calculated as follows:

Example Question 3.1.2 Road Haulage Gain & Pain Share Proposal (Cell F-G 26) is the evaluation total:

	Combined Gain & Pain Share from Cell F-G 26
Potential Supplier No 1	85%
Potential Supplier No 2	78%
Potential Supplier No 3	30%

Potential Supplier No 1 has offered the most beneficial Gain & Pain Share allocation, so this Potential Supplier will receive 5% out of 5% available.

Score for Potential Supplier No 2 = Score [Potential Supplier No 2] / Score [Potential Supplier No 1] x 0.05
= 78% / 85% x 0.05
= 4.59% out of 5% available

Score for Potential Supplier No 3 = Score [Potential Supplier No 3] / Score [Potential Supplier No 1] x 0.05
= 30% / 85% x 0.05
= 1.76% out of 5% available

Appendix D – Definitions

Term	Definition
Associated Person	A person the supplier is relying on in order to satisfy the conditions of participation (other than a guarantor)
Bravo Portal	Network Rail's electronic procurement and contract management system accessed at https://networkrail.bravosolution.co.uk/web/login.html
Contract	The contract to be entered into by Network Rail and the successful supplier, the draft terms and conditions for which are being issued as part of the associated tender documents
Tender Notice	The tender notice for this Procurement published by Network Rail in Find a Tender
Potential Supplier	Either a supplier (or a group of suppliers acting in a consortium) that is seeking to pre-qualify for and be invited to tender for this Procurement and/or b) a supplier (or group of suppliers bidding as a consortium) who has pre-qualified for this Procurement and been shortlisted and invited to tender (as the context so requires)
Procurement Act	The Procurement Act 2023.
Procurement Timetable	The timetable showing the key dates and deadlines for the pre-qualification stage and/or tender stage associated with this Procurement.
PSQ	Procurement Specific Questionnaire
Significant Sub-Contractor	An intended sub-contractor (other than an Associated Person) who is: (a) a first-tier sub-contractor (i.e. that the Potential Supplier will contract with directly if the Potential Supplier is successful) and~~/or~~ (b) identified by the Potential Supplier to deliver 5% or more of the requirements of the Contract or 5% or more of the value of the contract, if the Potential Supplier is successful.